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### **1.0 SAFETY AND HEALTH POLICY STATEMENT**

We provide a safe and healthful environment for employees and customers, protecting the public, and preserving EAFab Corporation assets and property.

At EAFab Corporation our most valuable resources are the people who work for us. Injuries can be prevented. To achieve this objective, EAFab Corporation will make all reasonable efforts to comply with all government regulations pertaining to safety and health issues. An effective Safety and Health Program will be carried out throughout our organization.

The Safety and Health Program will assist management and non-supervisory employees in controlling hazards and risks which will minimize employee and customer injuries, damage to customer's property and damage or destruction of EAFab Corporation property.

All employees will follow this program. This program is designed to encourage all employees to promote the safety of their fellow employees and customers. To accomplish our safety and health goals, all members of management are responsible and accountable for implementing this policy, and to insure it is followed.

EAFab Corporation is sincerely interested in the employee's safety. The policy of EAFab Corporation is to provide safe equipment, adequate tools and training, and the necessary protective equipment.

It is the employee's responsibility to follow the rules of safety as established for their protection and the protection of others, and to use the protective devices, which EAFab Corporation provides.

### **2.0 SAFETY EDUCATION AND TRAINING PROGRAM**

EAFab Corporation is committed to instructing all employees in safe and healthy work practices and to provide training to each employee with regard to general, acceptable, safety procedures and to any hazards or safety procedure(s) that is specific to that employee's work situation.

Purpose of a Hazard Communication Program is to provide employees with the knowledge and training necessary to understand and protect themselves and others from the chemicals they use and to comply with the OSHA Hazard Communication Standard (1910.1200).

#### Training will occur when

- There is a new hiring
- EAFab Corporation believes additional training is warranted
- EAFab Corporation is made aware of a new hazard

#### Training Areas

Employee training will consist of new employee orientation, periodic group meetings, and one- on-one training. The Safety and Health training provided to employees will include:

- EAFab Corporation Safety and Health Policies
- EAFab Corporation Safety and Health Program Incident Reporting
- Hazard Communication
- Hazardous Material Spill Response
- Personal Protective Equipment requirements
- Emergency Procedures
- Housekeeping

#### Training Documentation

Employee Training will be documented using the FORM 2.0.1

### **3.0 SAFETY AND HEALTH COMMUNICATION**

Communicating with employees regarding health and safety issues must be a two-way street. It must consist of both employer-to-employee and employee-to-employer communications. Employees will be trained through the formal Safety and Health Program, new employee orientation, and training specific to new or current job assignments and/or hazards.

#### Reporting of Safety and Health Hazards

EAFab Corporation has a system for the employee to report a hazard or unsafe condition. The form on the next page will be used for reporting and documenting such hazards. The employee should also notify his/her immediate supervisor verbally of such hazard or condition.

The "Safety Suggestion Form" will be sent to the employee's supervisor or designated Safety Manager. A prompt and thorough investigation will be conducted of the situation.

#### Postings

As a routine part of the Safety and Health Program, postings required by state and federal law (for example, Safety and Health protection on the Job, state OSHA citations and responses, etc.) will be prominently displayed in employee areas.

#### Training

EAFab Corporation has training requirements designed to instruct each employee on general safety procedures as well as safety procedures specific to the employee's job. These training requirements are described in greater detail in the chapter entitled Safety Education and Training Program.

#### Employee and New Employee Safety Handbook

All employees will have access to the Employee Safety Handbook before they are to begin work and at the time of orientation. They are to read the handbook and acknowledge it by filling out form 2.0.1 Employee Safety Training Checklist. This page will be placed in their personnel record.

## **4.0 SAFETY COMMITTEE**

The Safety Committee will be composed of rank and file employees. Pedro Quiroga is the appointed Safety Committee Chairperson. The Safety Committee will function as an advisory body to develop and recommend to EAFab Corporation Management matters of policy and procedure affecting administration of EAFab Corporation Safety and Health Program. The Committee will meet at a mutually convenient time, at the request of a member of the Committee, but not less than once every two months.

The Committee is responsible for:

- Reviewing and analyzing accident and property loss investigation reports for:
  - Accuracy and completeness (recommending follow-up investigation if necessary).
  - Provide recommendations for corrective action and provide consistency throughout EAFab Corporation operations.
  - Identification of accident problem or trend and determination of what order they should be given attention.
- Reviewing safety and property inspection reports, job safety analyses, supervisor's safety observation reports, and employees' suggestions for:
  - Possible changes in work practices or procedures.
  - Need for safety procedures.
  - Need for protective device or equipment.
  - Need for training.
- Developing practical safety and property inspection procedures and assisting in making inspections when requested by Pedro Quiroga.
- Keeping Managers informed of the progress of the Safety Program and informed as to the safety records of employees or other segments of EAFab Corporation.
- Assisting in developing the records and statistical data necessary to provide an accurate picture of EAFab Corporation safety problems.
- Identify unsafe work practices and conditions and suggest appropriate remedies. Ensure that employees and others (visitors, contractors, etc.) are informed about safety policies, training programs, injury risks and causation, and other health and safety-related matters. Maintain an open channel of communication between employees and management concerning occupational and environmental health and safety matters.
- Provide a means by which employees can utilize their knowledge of workplace operations to advise management in the improvement of policies, condition, and practices.

### 5.0 HAZARD IDENTIFICATION AND COMMUNICATION

The purpose of this notice is to inform you that EAFab Corporation is complying with the OSHA HAZARD COMMUNICATION STANDARD, TITLE 29 CODE OF FEDERAL REGULATIONS 1910.1200, by using SDS's, by compiling a Hazards Chemicals List, by insuring that containers are labeled, and by providing each employee with training.

This program applies to all work operations in EAFab Corporation where the employee may be exposed to hazardous substances under normal working conditions or during emergency situations.

The shop foreman will act as program coordinator, acting as the representative of EAFab Corporation, who has overall responsibility for the program.

Under this program, each employee will be informed of the contents of the Hazard Communication Standard, the hazardous properties of chemicals which they will use, safe handling procedures, and measures to be taken to protect themselves from these chemicals. Employees will also be informed of the hazards associated with chemicals in unlabeled pipes.

#### List of Hazardous Chemicals and Safety Data Sheets (SDS's)

EAFab will maintain a complete List of chemicals and their correspondent SDS through an online service that can be reached at <http://www.msdsonline.com/>

The service was contracted in order to certify that, as new chemicals are acquired at EAFab Corporation, their information is maintained and updated automatically so, in the event the SDS is required, anybody using the service can be sure the SDS they are printing is the latest version from the manufacturer.

Shop foreman, will maintain this electronic binder with a list of all hazardous chemicals and related work practices used in EAFab Corporation and will update the list as necessary.

Any new hazardous chemical(s) received by EAFab Corporation will be required to have an SDS document available for inspection before any employee uses the chemical, Paul Shoaff will include the chemical in the electronic binder at SDS Online service.

All SDS' will be a fully completed OSHA Form 174 or equivalent.

Employees must report immediately any unknown and/or unlabeled chemical to his/her immediate supervisor.

Employees are free to request any SDS for chemicals used in EAFab Corporation premises at any time during working hours to Paul Shoaff using Form 5.0.1 Safety Suggestion Form or their immediate supervisor.

#### Labels and Other Forms of Warning

Shop foreman will insure that all hazardous chemicals in the work place are properly labeled and updated as necessary. Labels should list at least the chemical's identity, appropriate hazard warnings, and the name, and address of the manufacturer, importer, or other responsible party. Labels are required on portable containers.

#### Non-Routine Tasks

When employees are required to perform hazardous, non-routine tasks (e.g., cleaning tanks, entering confined spaces, etc.), a special training session will be conducted to inform everyone involved in this task of any hazards that could be found and the precautions needed to reduce and avoid unnecessary exposures.

#### Training

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Everyone who works with or is potentially exposed to hazardous chemicals will receive initial training on the Hazardous Communication Standard and the safe use of those hazardous chemicals by Paul Shoaff. Whenever a new chemical or hazard is introduced, additional training will be conducted to address the new hazard and protective measures to be taken if deemed necessary.

The training plan will emphasize these components:

1. Summary of the standard and this written program.
2. Chemical and physical properties of hazardous materials (e.g., flash point, reactivity, etc.) and methods that can be used to detect the presence or release of chemicals (including chemicals in unlabeled pipes).
3. Physical hazards of chemicals (e.g., potential for fire, explosion, etc.), health hazards, including signs and symptoms of exposure, associated with exposure to chemicals and any medical condition known to be aggravated by exposure to the chemical.
4. Procedures to protect against hazards (e.g. Personal protective equipment required with its proper use and maintenance, work practices, methods to assure the proper use and handling techniques, and procedures for emergency response).
5. Work procedures to follow to assure protection when cleaning hazardous chemical spills and leaks. Where SDS's are located, how to read and interpret information on both labels and SDS's and how employees may obtain additional hazard information.

### Contractor Employees

Shop foreman will advise outside contractors in person of any chemical hazards that may be encountered in the normal course of their work on EAFab Corporation premises, the labeling system in use, the protective measures to be taken, and the safe handling procedures to be used.

Each contractor that brings chemicals onto EAFab Corporation premises must provide EAFab Corporation with the appropriate hazard information on these substances, including the labels used and the precautionary measures to be taken in working with these chemicals. Paul Shoaff will include all the chemicals brought by third parties in the EAFab Corporation electronic binder to certify that the latest SDS are available.

No EAFab Corporation worker is authorized to start working with any third party chemical without the proper training on the handling and use of the chemical, a printed copy of an SDS of the chemical and the specific clearance from Paul Shoaff as to the validity and version of the SDS in question. Assuming that any SDS provided by contractors or third parties is up to date and the latest version is not acceptable when we have a service that certifies the authenticity of each SDS by just a couple of clicks.

Contractors must establish procedures to identify existing and potential workplace hazards and assess the risk of associated workers injury and illness. The program must identify processes are in place to identify potential hazards by the use of JSA's, JHA's, facility wide or area specific analysis/inspections.

### Identification of Workplace Hazards

Employees and/or sub-contractors will identify the risk/hazards at the workplace, for routine and non-routine activities as well as new processes, changes in operation, products or services as applicable. these will be reviewed with all employees concerned. Hazards will be classified/prioritized based on the risk associated with the task. These risk/hazards will be addressed and mitigated by dedicated assignment, appropriate documentation of completion, and implemented controls.

Employees will be trained in the hazard identification process including the use and care of proper PPE.

Periodic, scheduled inspections will occur as a routine part of EAFab Corporation business.

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Employees who wish to remain anonymous may report unsafe conditions or hazards by submitting Form 5.0.2 Safety Suggestion Form to our Safety Manager, or their immediate supervisor, without identifying themselves. Employees must report immediately any unsafe condition or unsafe practice. No employee will be disciplined or discharged for reporting any workplace hazard or unsafe condition. Failure to report any obvious unsafe situation may result in disciplinary action, up to and including termination.

Contractors must establish procedures to identify existing and potential workplace hazards and assess the risk of associated workers injury and illness. The program must identify processes are in place to identify potential hazards by the use of JSA's, JHA's, facility wide or area specific analysis/inspections.

## **6.0 HAZARD IDENTIFICATION AND CONTROL PROCEDURE**

### Purpose

A hazard identification and risk assessment are processes used to identify and evaluate both existing and potential hazards on a worksite and the methods used to control or eliminate the hazards identified.

The assessment process must be completed prior to the start of all jobs to identify existing or potential hazards to workers and eliminate or control these hazards through the use of engineering or administrative controls, proper training or the use of personal protective equipment.

All company staff and contractors are required to take a proactive approach to managing and reporting hazards. When they observe a hazard, they are required to take steps to manage that hazard directly (provided they are adequately knowledgeable / trained to safely do so) – eliminate the hazard or get assistance from appropriate persons to do so whenever reasonably possible. Where hazards cannot be eliminated immediately, take necessary steps to warn others of the hazard. Report hazardous or potentially hazardous conditions and acts to a supervisor or your site contact if a contractor.

### Training

All employees will be trained in how to complete a hazard identification and risk assessment at their time of hire and on an annual basis thereafter.

### How to complete a Hazard Identification and Risk Assessment

*Note: The hazard identification and risk assessment must be completed by a supervisor and communicated to all workers before beginning the work. The JOHSC and workers also play an important role in the assessment process. Being the 'hands-on' people, they often find the new hazards first and then must stop and report. The JOHSC should review Hazard Assessments as part of their routine business at meetings to help make sure that the assessments fit with each other and cover all the company activities.*

### **Step 1: Identify the Hazards**

The supervisor is to start the hazard identification process before the job begins by identifying hazards that are known to exist on site and documenting them. By identifying hazards early, the supervisor may be able to implement controls before any workers arrive on site.

To ensure the process is thorough the supervisor should:

- look at all aspects of the work,
- include non-routine activities such as maintenance, repair, or cleaning,

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- look at accident / incident / near-miss records, include people who work "offsite" either at home, on other job sites, drivers, teleworkers, with clients, etc.,
- look at the way the work is organized or "done" (include experience and age of people doing the work, systems being used, etc),
- look at foreseeable unusual conditions (for example: possible impact on hazard control procedures that may be unavailable in an emergency situation, power outage, etc.),
- examine risks to visitors or the public,
- include an assessment of groups that may have a different level of risk such as young or inexperienced workers, persons with disabilities, or new or expectant mothers.

To identify potential hazards, the following questions may be asked (this is not a complete list):

1. Can any body part get caught in or between objects?
2. Do tools, machines or equipment present any hazards?
3. Can the worker make harmful contact with objects?
4. Can the worker slip, trip or fall?
5. Can the worker suffer a strain from lifting, pushing or pulling?
6. Is the worker exposed to extreme heat or cold?
7. Is excessive noise or vibration a problem?
8. Is there a danger from falling objects?
9. Is lighting a problem?
10. Can weather conditions affect safety?
11. Is harmful radiation a possibility?
12. Can contact be made with hot, toxic or caustic substances?
13. Are there dusts, fumes, mists or vapors in the air?

### Step 2: Assess the Risk

Ranking or prioritizing hazards is one way to help determine which hazard is the most serious and thus which hazard to control first. Priority is usually established by taking into account the employee exposure and the potential for accident, injury or illness. By assigning a priority to the hazards, you are creating a ranking or an action list. The following factors play an important role:

- percentage of workforce exposed,
- frequency of exposure,
- degree of harm likely to result from the exposure,
- probability of occurrence.

There is no one simple or single way to determine the level of risk. Ranking hazards requires the knowledge of the workplace activities, urgency of situations, and most importantly, objective judgment. One option is seen in the following two tables:

| <u>Risk Severity Index</u>             |                                    |                                                                                                                        |
|----------------------------------------|------------------------------------|------------------------------------------------------------------------------------------------------------------------|
| <u>1</u>                               | <u>Level 1</u>                     | <u>Fatality OR Property Damage Exceeding \$50,000</u>                                                                  |
|                                        | <u>Level 2</u>                     | <u>Employee admitted to hospital or probably permanent disability OR property damage between \$10,000 and \$50,000</u> |
|                                        | <u>Level 3</u>                     | <u>Employee not able to perform all of their regular duties OR property damage between \$1,000 and \$10,000</u>        |
|                                        | <u>Level 4</u>                     | <u>Employee able to perform all their regular duties OR property damage less than \$1,000</u>                          |
| <u>Probability Index of Occurrence</u> |                                    | <u>Example</u>                                                                                                         |
| <u>A</u>                               | <u>Likely to occur immediately</u> | <u>Could happen any day</u>                                                                                            |

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|                 |                                          |                                                                                    |
|-----------------|------------------------------------------|------------------------------------------------------------------------------------|
| <b><u>2</u></b> | <b><u>B</u></b> <u>Probable in time</u>  | <u>Likely to happen if conditions are repeated</u>                                 |
|                 | <b><u>C</u></b> <u>Possible in time</u>  | <u>Under the right conditions, the incident might be repeated</u>                  |
|                 | <b><u>D</u></b> <u>Remotely possible</u> | <u>Even under similar conditions, it is unlikely the incident will be repeated</u> |

For the activity being examined, determine the most likely reasonable level of severity (levels 1 through 4 in the table on page 10). Then determine how likely (the probability) the injury would be (letters A-D).

|                           |          | <u>Probability of Occurrence</u> |          |          |          |
|---------------------------|----------|----------------------------------|----------|----------|----------|
|                           |          | <u>A</u>                         | <u>B</u> | <u>C</u> | <u>D</u> |
| <u>Potential Severity</u> | <u>1</u> | <u>1</u>                         | <u>1</u> | <u>1</u> | <u>2</u> |
|                           | <u>2</u> | <u>1</u>                         | <u>2</u> | <u>2</u> | <u>3</u> |
|                           | <u>3</u> | <u>2</u>                         | <u>2</u> | <u>3</u> | <u>3</u> |
|                           | <u>4</u> | <u>2</u>                         | <u>3</u> | <u>3</u> | <u>4</u> |

|                           |                                                                                                                                                                                                                                                                                                                                  |
|---------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <u>Risk Definitions</u>   | <u>Risk is the chance or probability that a person will be harmed or experience an adverse health effect if exposed to a hazard. It may also apply to situations with property or equipment loss.</u>                                                                                                                            |
| <b><u>4 - Low</u></b>     | <u>Activities in this category contain minimal risk and are unlikely to occur. Organizations can proceed with these activities as planned.</u>                                                                                                                                                                                   |
| <b><u>3 - Medium</u></b>  | <u>Activities in this category contain minor to serious risks that are remotely likely to likely to occur. Application of proactive risk management strategies to reduce the risk is advised. Organizations should consider ways to modify or eliminate unacceptable risks.</u>                                                  |
| <b><u>2 - High</u></b>    | <u>Activities in this category contain unacceptable levels of risk, including catastrophic and critical injuries that are highly likely to occur. Organizations should consider whether they should eliminate or modify activities that still have a "high" rating after applying all reasonable risk management strategies.</u> |
| <b><u>1 - Extreme</u></b> | <u>Activities in this category should not be allowed to proceed without very careful planning. The company needs to evaluate whether the activity is actually necessary in the first place.</u>                                                                                                                                  |

### Step 3: Develop Safe Practices

Once the risk has been assessed, the appropriate controls need to be put into place.

The main ways to control a hazard include:

- Elimination (including substitution): remove the hazard from the workplace.
- Engineering Controls: includes designs or modifications to plants, equipment, ventilation systems, and processes that reduce the source of exposure.

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- **Administrative Controls:** controls that alter the way the work is done, including timing of work, policies and other rules, and work practices such as standards and operating procedures (including training, housekeeping, and equipment maintenance, and personal hygiene practices).
- **Personal Protective Equipment:** equipment worn by individuals to reduce exposure such as contact with chemicals or exposure to noise.

These methods are also known as the "hierarchy of control" because they should be considered in the order presented (it is always best to try to eliminate the hazard first, etc.).

Controls are usually placed:

1. At the source (where the hazard "comes from")
2. Along the path (where the hazard "travels")
3. At the worker

Control at the source and control along the path are also known as engineering controls.

Administrative controls limit workers' exposure by implementing other "rules", such as training, supervision, shorter shifts in high risk areas etc. These control measures have many limitations because the hazard itself is not actually removed or reduced. Administrative controls are not generally favored because they can be difficult to implement, maintain and are not a reliable way to reduce exposure

Personal protective equipment (PPE) includes items such as respirators, protective clothing such as gloves, face shields, eye protection, and footwear that serve to provide a barrier between the wearer and the chemical or material. It is the final item on the list for a very good reason. Personal protective equipment should never be the only method used to reduce exposure except under very specific circumstances because PPE may "fail" (stop protecting the worker) with little or no warning. For example: "breakthrough" can occur with gloves, clothing, and respirator cartridges.

Once it has been decided what the best and most practical control for a particular hazard is, this needs to be documented. The safe work procedure for the job needs to be written based on those risks and controls

### **Step 4: Communicate the Controls and Train the Workers**

Once the control has been put into place, the workers need to be trained in how to use it. This applies whether it is an engineering control such as a guard or interlock, an administrative control such as a safe work procedure for cold weather or particular PPE when handling a chemical. Training records and/or documented sign-offs are required to show that the workers have been made aware of the hazards and the controls.

### **Step 5: Review Periodically**

Repeat the Hazard Assessment process every 2 years or when site conditions change, when new tasks are added or when new workers join the crew, in order to prevent the development of unsafe working condition.

## **7.0 EMERGENCY ACTION PLAN & INFORMATION**

### Policy

It is the policy of EAFab Corporation to take every possible action to comply with all emergency regulations and protect employees in any and all emergency situations.

### Emergency plan coordinator

Shop foreman is responsible for making sure this emergency action plan is kept up to date, practices are performed, and reviewed periodically.

### Reporting procedures

| Type of Emergency   | Contact Number and How To Report                        |
|---------------------|---------------------------------------------------------|
| Fire                | After Evacuation, Call 911                              |
| Explosion           | Report to evacuation area, Call 911                     |
| Medical             | Call 911 first, contact emergency contact of employee/s |
| Bomb threat         | Evacuate premises, Call 911                             |
| Chemical Spill/Leak | Evacuate premises, Call 911                             |
| Violence            | Call 911                                                |

### Evacuation Procedures

#### **1. Emergency Escape Procedures and Routes**

Emergency escape procedures and route assignments have been posted in each work area, and all employees have been trained by supervision in the correct procedures to follow. New employees are trained when assigned to a work area. A sample escape procedure and escape route sheet of the type posted in work areas is included with this plan.

#### **2. Employee Accountability Procedures after Evacuations**

Each supervisor is responsible for accounting for all assigned employees, personally or through a designee, by having all such employees report to a predetermined designated point and conducting a head count. Each assigned employee must be accounted for by name. A summary of the evacuation points, together with the identities of supervisors and assigned employees who must report to each, is included with this plan.

#### **3. Training**

Training is provided for employees when:

1. The plan was initiated
2. Responsibilities change
3. New employees are hired or transferred
4. At least annually

### Fire Extinguishers

The discretion of whether to use or not use fire extinguishers is the sole responsibility of the Emergency Plan Coordinator/s.

### Employee accountability procedures following an emergency evacuation

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Each supervisor is responsible for accounting for each assigned employee following an emergency evacuation. The following procedures apply:

1. Points have been established for all evacuation routes and procedures. These points are designated on each posted work area escape route.
2. All work area supervisors and employees must report to their designated points immediately following an evacuation.
3. Each employee is responsible for reporting to his or her supervisor so that an accurate head count can be made. Supervisors will check off the names of all those reporting and will report those not checked off as missing to the Emergency Evacuation Coordinator.
4. The Emergency Evacuation Coordinator will be located at one of the following locations:
  - A. Main Parking Lot – across from main office door, against embankment.
  - B. Urban Assault Parking Lot – in the case of an extreme situation.
5. The Emergency Evacuation Coordinator will determine the method to be utilized to locate missing personnel in each situation.

### Rescue and medical duties

It may become necessary in an emergency to rescue personnel and perform some first-aid treatment. Local resources such as hospitals or fire departments are to provide rescue and medical services unless otherwise instructed by the Emergency Plan Coordinator at the time of the emergency.

Where that is the case, a list those resources are as follows:

| <b>Name</b>               | <b>Location</b>    | <b>Information</b> | <b>Phone Number</b> |
|---------------------------|--------------------|--------------------|---------------------|
| <b>Oakdale Fire Dept.</b> | Oakdale, PA        | FIRE               | 911, 724-693-9408   |
| <b>Oakdale Police</b>     | Oakdale, PA        | Emergency/Crime    | 911, 724-693-9639   |
| <b>St. Clair Hospital</b> | Bower Hill Rd. PGH | Medical Emergency  | 911, 412-942-4000   |

### Contacts

For more information about this plan, contact the Emergency Action Coordinator. The following people should be contacted during off-hours:

1. Claudia Leal                      412-812-5754
2. Pedro Quiroga                412-999-2474

## 8.0 PERSONAL PROTECTIVE EQUIPMENT

### Purpose

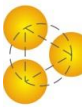
To establish the policy for employees to wear Personal Protective Equipment.

### Policy

EAFab Corporation is dedicated to providing a safe and healthy workplace. All employees are expected to do their part to achieve this goal. Employees can do their part by using the proper Personal Protective Equipment (PPE) provided them. A training will be provided and documented.

Personal Protective Equipment will be provided, used and maintained in a sanitary and reliable condition wherever it is necessary to prevent injury. Personal Protective Equipment requirements include, but are not necessarily limited to the items below:

EAFAB Minimum requirements

|  <b>EAFab</b><br>Where you find REAL solutions | Hard Hat | Safety Glasses | Clear Face Shield | Dark Face Shield | Welding Hood | Ear Plugs | Disposable Dust Masks | Welding Gloves | Work Gloves | Flame Ret. clothing | Safety Boots | Knee pads |
|---------------------------------------------------------------------------------------------------------------------------------|----------|----------------|-------------------|------------------|--------------|-----------|-----------------------|----------------|-------------|---------------------|--------------|-----------|
| Office Work                                                                                                                     |          |                |                   |                  |              |           |                       |                |             |                     |              |           |
| Shop Visitor                                                                                                                    |          | X              |                   |                  |              |           |                       |                |             |                     | X            |           |
| Material Handling                                                                                                               |          |                |                   |                  |              |           |                       |                | X           |                     | X            |           |
| Saw cutting                                                                                                                     |          | X              |                   |                  |              |           |                       |                |             |                     | X            |           |
| Pipe bending                                                                                                                    |          |                |                   |                  |              |           |                       |                |             |                     | X            |           |
| Polishing                                                                                                                       |          | X              | X                 |                  |              | X         | X                     |                | X           |                     | X            |           |
| Grinding                                                                                                                        |          | X              | X                 |                  |              | X         | X                     |                | X           |                     | X            |           |
| Flame cutting                                                                                                                   |          | X              |                   | X                |              | X         |                       | X              |             | X                   | X            |           |
| Plasma cutting                                                                                                                  |          | X              |                   |                  | X            | X         |                       | X              |             | X                   | X            |           |
| Welding                                                                                                                         |          |                |                   |                  | X            | X         |                       | X              |             | X                   | X            |           |
| Fitting                                                                                                                         |          |                |                   |                  |              |           |                       |                |             |                     | X            |           |
| Painting                                                                                                                        |          |                |                   |                  |              | X         | X                     |                |             |                     | X            |           |
| Working under workers                                                                                                           | X        | X              |                   |                  |              | X         |                       |                | X           |                     | X            |           |
| Working on your knees                                                                                                           |          |                |                   |                  |              |           |                       |                |             |                     | X            | X         |

The workplace is assessed to determine if hazards are present, or are likely to be present, which necessitate the use of personal protective equipment (PPE). If such hazards are present, or likely to be present: (a) Select, and have each affected employee use, the types of PPE that will protect the affected employee from the hazards identified in the hazard assessment; (b) Communicate selection decisions to each affected employee; and (c) Select PPE that properly fits each affected employee. The hazard assessment shall be certified by the person who completed the hazards assessment and the date the assessment was completed.

### Protective Headwear

Where there is the exposure of overhead danger from falling objects or from electric shock or burns, protective headwear must be worn. Protective headwear is an approved hard hat that meets the requirements of the American National Standards Institute (ANSI Z889.1-1969).

Protective headwear will be issued to the required employees. Employees are responsible for using their hard hats while working. Also, employees must notify their supervisor about a damaged or lost hardhat immediately.

### Protective Eyewear

When there is an exposure to the eyes from flying objects, glare or liquids, protective eyewear is required. Protective eyewear is an approved safety eye protector or safety goggle, which meets the standards of the American National Standards Institute (ANSI Z87.1-1968).

Protective eyewear will be issued to the required employees.

### Disposable Dust Masks

When there is the potential of exposure to airborne nuisance dust or particles, disposable dust masks are required.

### Protective Gloves

When there is an exposure to the hands, protective gloves are required. Protective gloves are construction type work gloves and chemical resistive gloves.

Construction type work gloves are required for, but not limited to, employees that have an opportunity of cutting, pinching, hitting, or burning their hands.

Chemical resistive gloves are required for, but not limited to, employees that have an opportunity of spilling hazardous chemicals or corrosive material onto their hands.

### Payment

Personal protective equipment (PPE), used to comply with 29 CFR 1910.132 and/or 29 CFR 1926.95, shall be provided by the Company at no cost to employees. Please refer to 29 CFR 1910.132 (h) and/or 29 CFR 1926 (d) for specifics.

### 9.0 MACHINERY TAG OUT PROGRAM

#### Purpose

This policy and procedure establish the minimum requirements for EAFab Corporation Machinery Tag Out Program. It governs lock out and/or tag out procedures to be used to verify that equipment or machines are isolated from all potentially hazardous energy.

Machinery is to be locked out or tagged out before employees perform any servicing or maintenance activities where the unexpected energizing, start up or release of stored energy could cause injury.

#### Policy

Procedures described apply to all electrical equipment and machinery connected to an energy source by either hard wire or other permanent connection (hydraulic lines, electrical, etc.) that is repaired, serviced, or maintained by EAFab Corporation personnel.

The Machinery Tag Out Program applies to all equipment or machinery operated by mechanical, hydraulic, pneumatic, chemical, thermal, or other energy resources where the unexpected energizing could cause injury to employees or customers.

Circuit breakers disconnect switches, and other energy isolating devices used to control the flow of energy to the machine/equipment must be operated in such a manner as to shut off or "isolate" all energy to the machine.

#### Definitions

*Energy Source* Any source of electrical, mechanical, hydraulic, chemical, thermal, or any other energy source.

*Energized* Connected to an energy source or containing residual or stored energy.

*Device* A mechanical device that physically prevents the transmission or release of energy (like, circuit breaker, disconnect switch, slide gate, line valve, etc.)

*Lock out* Placing a lock out device on an energy isolating device to shut down its flow of energy.

*Lock out device* A device such as a lock, either combination or key type, to hold an energy isolating device in the "safe" position and prevent energizing of a machine or equipment.

*Tag out* Placing a tag or sign on an energy isolating device indicating that the equipment shall not be operated until the tag out sign is removed.

*Tag out device* A prominent warning device or sign that can be attached to the energy isolating device. Tags will state the following: DANGER : DO NOT OPERATE

### 10.0 INITIAL TRAINING

Employees involved in the use of this Machinery Tag Out Program must receive training in the requirements of this program upon initial assignment. Pedro Quiroga is responsible for verifying that training is completed as required by this program.

Authorized employees will be trained in the recognition of hazardous energy sources present at the location they work, the type and magnitude of the energy available in the workplace, and the methods/means needed for energy isolation and control. Employees must be trained to recognize when the Machinery Tag Out Program is being implemented and understand the purpose of the procedure and the importance of not attempting to start up or use machinery or equipment that has been locked or tagged out. When tags are used, employees must be instructed in the following limitations of tags:

Tags are warning devices: they do not provide physical restraint that a lock out does. When a tag or lock is attached, it is not to be removed by anyone without authorization from the employee who placed it on the machine or equipment. They are never to be bypassed, ignored, or defaced.

Tags must be legible and understandable to be effective.

Tags and locks, and their means of attachment must be made of material that will withstand the working environment where the tags will be used.

Tags and locks must be attached securely so they cannot inadvertently be detached during use.

Tags evoke a false sense of security. They are only part of the entire Machinery Tag Out Program.

#### **Machinery Tag Out Program - Inspection Form**

This form will be used when inspecting the Tag Out/ Lock Out Procedure

Inspector's Name :

Date :

MACHINERY / EQUIPMENT INSPECTED / COMMENTS:

1. .
2. .
3. .
4. .
5. .
6. .
7. .
8. .
9. .
10. .

## **SAFETY AND HEALTH PROGRAM**

I hereby certify that I have inspected the Lock Out/Tag Out procedure for the above listed equipment, have interviewed operators of such equipment and determined that compliance with EAFab Corporation Lock Out/Tag Out procedure is satisfactory.

Inspectors Signature:

Date:

Lock and Tag Check Out / Check In Log

| Date | Lock # | Employee | Equipment | Check Out | Check In |
|------|--------|----------|-----------|-----------|----------|
|------|--------|----------|-----------|-----------|----------|

### **11.0 HAZARD PREVENTION AND CONTROL**

EAFab Corporation shall undertake efforts as outlined in this section to correct or control potential hazards in a timely manner.

EAFab Corporation will implement methods to eliminate the hazard, and will implement procedures for safe work.

Safe work will be done through training, correction of unsafe performance, and compliance through the disciplinary system.

#### Identified Safety and Health Concerns:

All identified potential workplace safety and health hazards should be reported to Pedro Quiroga, or a member of management.

Situations that are unsafe, or posing as a safety and health hazard, will be reviewed and reported to management for corrective action.

#### Newly Identified Safety and Health Concerns:

Anytime a new substance, procedure, equipment, or process is introduced into the workplace, which creates or is reported to create an unsafe condition or situation, Pedro Quiroga will evaluate the substance, procedure, equipment, or process.

Employees will have an opportunity to submit their recommendations and suggestions regarding new workplace hazards at any time.

#### Hazards Which Create a Risk of Imminent Harm:

When a hazard exists which EAFab Corporation cannot control or abate immediately without endangering employees and /or property, all exposed personnel will be removed from the immediate area of potential exposure, except those employees that are necessary to correct the hazardous condition.

All employees involved in correcting the hazardous situation will receive appropriate training and/or instruction in how to do so. They will also be provided with the appropriate personal protective equipment.

#### Hazards Which Do Not Create a Risk of Imminent Harm:

Unless there are factors beyond EAFab Corporation reasonable control, such hazards are to be abated within 5 days or less.

#### Housekeeping:

Good housekeeping is an integral part of any effective safety program. Keeping work areas neat and clean reduces the potential for accidents and injuries.

Each employee is responsible for keeping his or her work area neat, orderly, and free of any hazardous condition.

### **12.0 PROPERTY MAINTENANCE**

#### Purpose

To establish the policy for property maintenance.

#### Policy

EAFab Corporation goal is to provide its customers and employees with a safe facility. The following guidelines will help management determine if needed repairs are necessary.

#### Guidelines for Property Maintenance and Repair

Property maintenance and repair will be performed to meet the standards of any applicable codes, including, but not limited to:

Occupational Safety and Health Administration (OSHA) National Fire Protection Association (NFPA) which include National Electric Code

Flammable Liquids Code

Life Safety Code National Fuel Gas Code Uniform Fire Code (UFC)

Building Officials and Code Administrators International Building Code (BOCA) Americans With Disabilities Act (ADA)

Continued operation of the business

Management must promptly, as appropriate, fix, repair, train employees, and/or give warnings of safety hazards. Management must promptly fix or repair any item necessary for the continued operation of the business. In the event an accident occurs, Pedro Quiroga will fill out the Liability Report Form on the next page and maintain a record thereof.



## SAFETY AND HEALTH PROGRAM

### 13.0 LIABILITY REPORT FORM

Date:

Claimant's Name:

Age:

Phone:

Address:

Description of Occurrence:

Injuries:

Medical Care? YES NO

Ambulance? YES NO Hospital or Doctor:

Property Damage? YES NO describe same:

Is a Product Involved? YES NO Name and Size:

Name and Address of Manufacturer:

Did Claimant Slip, Fall, or Trip?

Was Area Inspected? YES NO

Foreign Matter or Debris Found on Floor? YES NO Describe:

Witnesses: Name: Phone:

Address:

Name: Phone:

Address:

Photos Taken? YES NO Additional Remarks:

Report Prepared By:

### 14.0 EMERGENCY ACTION PLAN

#### Purpose

To establish the policy and procedures regarding management's and employee's response to various emergency situations. Examples of an emergency are fire, tornado, earthquake, and bomb threat.

#### Overview

The procedures cover the following topics:

Fire Reporting and Response Evacuation

Bomb Threat

First Aid

Hazardous Material Spill

Robbery

#### Policy

EAFab Corporation has developed plans that address emergency situations that may arise in EAFab Corporation locations and which may threaten human health and safety, and damages EAFab Corporation assets.

Management is responsible for implementing the Emergency Action Plans. These Emergency

Action Plans will meet the following objectives:

Provide a means of notifying employees, customers and local authorities of an emergency situation.

Provide for a safe and orderly method of evacuation of employees and customers from

EAFab Corporation premises.

Account for all employees who occupied EAFab Corporation premises at the time of evacuation, should one occur.

Provide emergency first aid treatment or summon emergency medical assistance for injured individuals.

Provide training and needed information to those employees responsible for taking action in the event of an emergency.

Signs as required by ordinance, regulation, or law will identify emergency exits. Employees are required to be familiar with the location(s) of alarm pull stations and emergency exits.

Training on Emergency Action Plans will take place during new employee orientation, when changes occur in the action plans, and periodically as coordinated by Pedro Quiroga. If hazardous materials are involved, disposal must be done in compliance with federal, state, and local environmental laws.

#### Fire Reporting and Procedure:

If a fire alarm or alert is sounded or a fire is reported by an employee, regardless of the reason for the alarm or the severity of the fire, the following action must be taken immediately:

## **SAFETY AND HEALTH PROGRAM**

1. If trained in the use of fire extinguishers, an employee may attempt to suppress a small fire, until relieved by the Fire Department or until it becomes apparent that the fire cannot be controlled by fire extinguishers.
  - a. Note: Employees should never attempt to control a fire, which endangers their health. They must immediately evacuate the area when it becomes apparent that the fire cannot be controlled or when conditions become more hazardous.
2. Immediately notify Pedro Quiroga of EAFab Corporation and all other management.
  - a. This notification needs to be done EVERY SINGLE TIME a fire extinguisher is used to attempt abating a fire.
3. If the fire cannot be handled by fire extinguishers, the standing management needs to notify immediately the Fire Department by dialing 911.
  - a. Give EAFab Corporation name, address, and area where the fire is located.
4. Management will assign an employee to wait for the fire department outside EAFab Corporation and direct them to the fire's location.
5. Management will start evacuation procedures for all EAFab Corporation.
6. Once outside EAFab Corporation, a manager will take a head count of employees to insure all were safely evacuated.
  - a. Double checks that all individuals are out of EAFab Corporation premises.
  - b. When one or more employees are unaccounted for, employees are not to re-enter the building to conduct a search under ANY CIRCUMSTANCE.
  - c. Notify the ranking fire or other emergency response official on the scene and their approximate location.

### Evacuation

1. Telephones the local emergency agency (Fire, Police, Hazardous materials team, etc.).
2. Makes the following announcement on the public address system, "Ladies and Gentlemen. EAFab Corporation is being temporarily closed. Please leave by the nearest exit immediately. Thank you."
  - a. Make this announcement twice, and repeats it as frequently as needed.
3. Designates a safe area outside EAFab Corporation as a gathering point for all employees. Takes a head count of employees to insure all were safely evacuated.
4. Checks all areas of their respective departments, restrooms, and public areas to verify that employees and individuals are evacuated.
5. Once all employees are accounted, a manager will dismiss all non-essential employees.
6. If time and conditions permits it, a manager will secure all cash, checks, and charge documents in the safe.

### Bomb Threat:

When someone calls and says there is a bomb in the building, the following steps will be performed:

1. The employee receiving the threatening call needs to keep the caller on the line as long as possible.

## **SAFETY AND HEALTH PROGRAM**

- a. Asks them to repeat the message.
  - b. Tries to write down every word spoken by the caller.
  - c. Asks the caller where the bomb is located and when it will go off.
  - d. Tells the caller that the building is occupied and detonation of a bomb could result in the death and injury to innocent people.
  - e. Pays particular attention to background noises, such as music playing, engine noises, etc.
  - f. Listens to the voice, male, female, voice quality, accent, and speech impediments.
2. When the caller hangs up, do not hang up the phone!
    - a. Sometimes, phones can be traced back to the source.
  3. Immediately notify management and describe the threat.
  4. Calls the local Police or Fire Department to report the incident.
    - a. Follows all recommendations and instructions provided by either department.
  5. Inform either department that we are to start evacuation procedures and see if any of them has any suggestions to minimize the threat to employees.
  6. As the building is being evacuated, a quick search of the premises (if time permits) needs to be conducted for any suspicious looking device or package.
    - a. If one is found, DO NOT TOUCH IT.

### First Aid

If an employee / individual is injured, the initial responsibility of management is to provide the needed first aid or arrange for emergency medical response or professional medical care.

1. A manager treats the injured individual using the EAFab Corporation first aid kit.
2. In the event an employee is injured beyond the means the First Aid Kit allows for treatment 911 must be called to allow professional individuals to perform a thorough assessment of the individual condition and the best route of action.

### Hazardous Material Spill

Management will respond to incidental releases of hazardous substances when the substance can be absorbed, neutralized, or otherwise controlled at the time of release by employees in the immediate area or by maintenance personnel. If a large spill or fire occurs that is not controllable, Management will contact the appropriate local authorities, such as the Fire Department.

### Robbery

In the event a robbery occurs, the main objective is to reduce the risk of injury to employees and individuals and to get the robber out of the building as soon as possible.

1. All employees need to remember that anything is replaceable. Life is not.
2. Be attentive and calm. Listen to the robber and do exactly what he/she asks you to do.

3. Do not give up money as demanded.
4. Remain alert. Try to remember details of the robber's appearance, clothing, speech, etc.
5. If possible, watch the robber's method and direction of escape.
6. Expect foul/strong language. Expect to lie on the floor.
7. Do not make any sudden movements.
8. Don't overreact. Do not grab for the weapon or call for help.
9. Do not argue.
10. Remember that for every hero, there are a dozen martyrs.
11. After the robbery, write everything down.
12. Call the Police
13. Call Pedro Quiroga of EAFab Corporation
14. Have all witnesses write everything they can recall.

## **15.0 OSHA INSPECTION**

### Purpose

To establish the policy for all managers to follow if an OSHA Compliance inspection will be conducted.

### Overview:

The Occupational Safety and Health Administration (OSHA) is authorized to conduct workplace inspections to determine whether employees are complying with standards issued by the agency for safe and healthful workplaces. Many States have their own occupational safety and health programs, and regularly inspect workplaces. Inspections are usually conducted without advance notice and can be conducted for one or more of the following reasons:

**Imminent Danger Situations** – Any condition where there is reasonable danger that a situation exists that can be expected to immediately cause death or serious harm. **Catastrophes and Fatal Accidents** – Investigation of fatalities and accidents resulting in the hospitalization of 3 or more employees. Such catastrophes must be reported to OSHA within 8 hours.

### **Employee Complaints**

**Programmed Inspections** – Based on injury rates, previous citation history, and employee exposure to toxic substances or random computerized selection.

This policy details the phases of an OSHA compliance inspection, the response and attitude of management to an inspection and steps to insure completion of the appropriate follow-up corrective action.

### Policy:

EAFab Corporation policy is to demonstrate "good faith" effort to comply with all OSHA standards and any health and safety issues raised in an OSHA compliance inspection.

## **SAFETY AND HEALTH PROGRAM**

Management is responsible for implementing this policy and correcting all health and safety deficiencies revealed during compliance inspections. Pedro Quiroga will provide technical assistance and coordination of corrective action, as required.

### **Admitting an OSHA Compliance Officer**

If an OSHA compliance inspector requests to conduct an inspection, the senior management member is to ask to see the officer's credentials.

An OSHA inspector carries either U.S. or the state's Department of Labor credentials bearing their photograph and a serial number. In every case, verify the authenticity of the compliance inspector's identification by calling the nearest OSHA office.

**Note: DO NOT REFUSE THE COMPLIANCE OFFICER ADMITTANCE.**

The senior management member is to contact Pedro Quiroga immediately.

If EAFab Corporation requires a Search Warrant, inform the OSHA compliance officer before the opening conference begins. EAFab Corporation rights to challenge a warrant may be lost if it permits the inspection to proceed.

### **OSHA Facts**

An OSHA Inspection is divided into three parts:

The Opening Conference

The Walk Around Inspection

The Closing Conference

There are no time limits specifying how long an inspector may remain on the premises. Violations are considered to be "alleged violations" until they become a final order of the Occupational Safety and Health Review Commission.

EAFab Corporation may contest (appeal), in writing any part of the citation within 15 working days after it has received it.

The citation must be posted in the work place for three days following its receipt or until the condition creating the alleged violation is corrected. Management will ask for clarification about any point(s) an inspector raises that they don't understand. Management and employees will not admit to violating any safety standard.

If EAFab Corporation contests (appeals) an alleged violation, copies of the appeal will be posted at the work site.

### **Opening Conference**

Before inspecting the premises, the OSHA compliance officer will conduct an opening conference at which they will explain:

The reason for the inspection (for example. employee or individual complaint) Purpose of the visit

Scope of the inspection

OSHA Standards that apply

The below are listings of all OSHA Standards

### **OSHA Standards**

1904, Recording and Reporting Occupational Injuries and Illnesses

1904 Table of Contents/Authority for 1904

- 1904.1, Purpose and scope.
- 1904.2, Log and summary of occupational injuries and illnesses.
- 1904.3, Period covered.
- 1904.4, Supplementary record.
- 1904.5, Annual summary.
- 1904.6, Retention of records.
- 1904.7, Access to records.
- 1904.8, Reporting of fatality or multiple hospitalization incidents.
- 1904.9, Falsification, or failure to keep records or reports.
- 1904.10, Recordkeeping under approved State plans.
- 1904.11, Change of ownership.
- 1904.12, Definitions.
- 1904.13, Petitions for record keeping exceptions.
- 1904.14, Employees not in fixed establishments.
- 1904.15, Small employers.
- 1904.16, Establishments classified in Standard Industrial Classification Codes (SIC) 52-89,  
(except 52-54, 70, 75, 76, 79 and 80).
- 1904.17, Annual OSHA Injury and Illness Survey of Ten or More Employers.
- 1904.20, Description of statistical program.
- 1904.21, Duties of employers.
- 1904.22, Effect of State plans.
- 1904.30, OMB control numbers under the Paperwork Reduction Act.
- Other OSHA Standards with Recordkeeping Requirements
- 1910.95, Occupational noise exposure
- 1910.120, Hazardous waste operations and emergency response
- 1910.440, Recordkeeping requirements
- 1910.1000, Toxic & Hazardous Substances
- 1910.1001, Asbestos

1910.1018, Inorganic arsenic

1910.1025, Lead

1910.1027, Cadmium

1910.1028, Benzene

1910.1029, Coke oven emissions

1910.1030, Bloodborne pathogens

1910.1043, Cotton dust

1910.1044, 1,2-dibromo-3-chloropropane

1910.1045, Acrylonitrile

1910.1047, Ethylene oxide

1910.1048, Formaldehyde

1910.1050, Methylenedianiline

1910.1051, 1,3-Butadiene

1910.1052, Methylene Chloride

1910.1450, Occupational exposure to hazardous chemicals in laboratories

1913.10, Rules of agency practice and procedure concerning OSHA access to employee medical records

1915.7, Competent person

1915.1001, Asbestos

1919.11, Recordkeeping and related procedures concerning records in custody of accredited persons

1919.12, Recordkeeping and related procedures concerning records in custody of the vessel.

1925.3, Records

1926.60, Methylenedianiline

1926.62, Lead

1926.65, Hazardous waste operations and emergency response

1926.800, Underground Construction

1926.1091, Recordkeeping requirements

1926.1101, Asbestos

1926.1127, Cadmium

1960, Federal employees

1960.66, Purpose, scope and general provisions

1960.67, Log of occupational injuries and illnesses

1960.68, Supplementary record of occupational injuries and illnesses

1960.70, Reporting of serious accidents

1960.71, Locations and utilization of records and reports

1960.72, Access to records by Secretary

1960.73, Retention of records

1960.74, Agency annual reports

Preambles to OSHA Standards

Reporting of Fatality or Multiple Hospitalization Incidents.

OSHA Directives

CPL 2.80, Handling of Cases To Be Proposed for Violation-By-Violation Penalties, (1990, October 21), 15 pages. Includes procedures for record keeping violations.

CPL 2.91, Enhanced Verification of Records, (1990, May 13), 6 pages.

CPL 2-2.46, 29 CFR 1913.10(b)(6), Authorization and Procedures for Reviewing Medical Records, (1989, January 5), 5 pages.

CPL 2-2.33, 29 CFR 1913.10, Rules of Agency Practice and Procedure Concerning OSHA Access to Employee Medical Records - Procedures Governing Enforcement Activities, (1982, February 8), 12 pages.

CPL 2-2.32, 29 CFR 1913.10(b)(6), Authorization of Review of Specific Medical Information, (1981, January 19), 5 pages.

CPL 2-2.30, 29 CFR 1913.10(b)(6), Authorization of Review of Medical Opinions, (1980, November 14), 2 pages.

CPL 2.113, Fatality Inspection Procedures, (1996, April 1), 5 pages.

Review Commission Decisions

81-2135, (1985, April 17), 5 pages. Failure to make records available during an inspection.

82-630, (1991, February 15), 9 pages. Making medical records available when a Workers Compensation claim is pending.

82-1016, (1987, March 18), 7 pages. Privacy of OSHA 200 and related records.

89-2614, (1993, February 3), 8 pages. Recording of elevated blood lead levels on the OSHA 200.

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90-552, (1992, February 21), 2 pages. OSHA 200 must be maintained at each location.

89-433, (1993, April 27), 9 pages.

90-2179, (1993, April 1), 3 pages. Assessing separate penalties for multiple errors on the  
OSHA 200

87-0922, (1993, February 5), 25 pages.

88-237, (1994, May 23), 6 pages.

91-0110, (1996, January 19), 6 pages.

### Standard Interpretations and Compliance Letters

There are several hundred Standard Interpretations and Compliance Letters relating directly to the topic of Recordkeeping.

Please refer to the Search Page on the "<http://www.OSHA.gov>" web site. From here you can access these documents either by the specific regulation, or by conducting a search.

You can also contact OSHA at one of their regional offices. They will provide you with forms and answers to any questions you may have. Don't hesitate to use them as a valuable resource.

Senior Management must arrange for the following to attend the opening conference: Pedro Quiroga of EAFab Corporation, Other Personnel, as directed

Management must request copies of all applicable safety and health standards as well as a copy of any employee complaint.

### The Walk Around Inspection

After the opening conference, the OSHA compliance officer will go through the facility to inspect for safety and health hazards. At a minimum, the OSHA compliance officer will likely ask for documentation of the following:

Compliance with the hazard communication standard. Compliance with the lockout/ tagout standard.

Record keeping for employee training

The employee written safety and health management program

When senior management members and other EAFab Corporation employees accompany an OSHA compliance officer on an inspection, they should be respectful while firmly standing up for EAFab Corporation rights and viewpoints. The conduct of EAFab Corporation personnel shall be in accordance with the following guidelines:

Do not physically interfere with the OSHA compliance officer when they are making the inspection

Do not give false or misleading information.

Accompany the OSHA compliance officer at all times during the inspection.

Answers to an OSHA compliance officer's questions are to be responsive to the question asked. Do not offer any information beyond the scope of the question.

Avoid making any statement that could be construed as an admission of a violation of any recognized health standard.

## **SAFETY AND HEALTH PROGRAM**

Do not discuss with the OSHA compliance officer any previous safety inspections.

If the OSHA compliance officer wants to take photographs, senior management must request copies of the photographs. Senior management will also take photographs of the area from the same and different angle.

Watch and take notes regarding all activities of the OSHA compliance officer. Notes should be detailed and should include such pertinent information as to the name(s) of the OSHA compliance officer(s), time of arrival, activities of OSHA compliance officer, amount of time spent at each location, comments about violations and potential citations, who was interviewed, what was said, etc.

Immediately correct minor but apparent safety problems in order to help establish EAFab

Corporation "good faith" effort to comply with all OSHA health and safety standards.

The OSHA compliance officer cannot and will not act in a consultative capacity. If they see or if EAFab Corporation personnel points out a violation, the OSHA compliance officer must issue a citation.

### **Closing Conference**

After the walk around inspection, a closing conference is held with the OSHA compliance officer, senior management, and any employee representative. The OSHA compliance officer will discuss all unsafe and unhealthy situations observed and will identify all applicable sections of the standards which may have been violated.

Management will insure that all violations are understood. When appropriate, Management will produce records to show compliance efforts and fully explain any difficulties that will be encountered in the correction of safety hazards. Management and employees will not admit violation or indicate how long it will take to correct a potential violation.

### **Post Inspection Activities**

Time limits to correct violations generally range from 5 to 30 days, unless an extension is requested. Time limits will be given in person at the closing conference or mailed within 30 days in a written report of the inspection findings.

Follow-up action will be documented in writing, by senior management, listing specific action steps, the individual accountable, and the target date for completion. Management is responsible for completing all corrective action.

OSHA inspection reports, EAFab Corporation response, and all correspondence to and from

OSHA will be retained permanently by Pedro Quiroga.

### **Questions an OSHA Compliance Officer Might Ask in an Administrative Interview:**

1. Do you have a written Hazard Communication Plan?

29CFR 1910.1200 requires employers to have a written plan which describes how the training, labeling, SDS management and other requirements of "Right-to-Know" will be met. More citations and fines are given for this than anything else.

2. Do you have a complete written inventory (list) of hazardous materials?

29CFR 1910.1200 requires employers maintain a current list of all hazardous materials used in the workplace. This list must be accessible to employees.

3. Has a specific person been assigned responsibility for your safety program?

## **SAFETY AND HEALTH PROGRAM**

29CFR 1910.1200 and other regulations require that you assign responsibility for various aspects of the safety program. Some states specifically require that employers name a person with overall safety responsibility.

4. Do you have a formal disciplinary policy relating to safety?

29CFR 1910. Various sections require employers enforce safety rules. Employees may not decide on their own when to follow the rules.

5. Do employees ever complain of headaches, nausea, dizziness or skin problems?

All OSHA standards require that employers evaluate workplace hazards and determine whether material use or employee complaints mean that there is any over-exposure to unsafe conditions.

These are typical symptoms of over-exposure.

6a. Do employees wear respirators or dust masks?

6b. If "Yes": Do you have written respirator procedures?

29CFR 1910.134 requires that if any employee uses a respirator, including a dust mask, written procedures must cover use, fit testing, cleaning and maintenance of the respirator.

6c. Do you have records showing fit testing of respirators and training?

29CFR 1910.134 requires employers to test the fit of each respirator on each employee and train the employee to check and properly use the respirator.

7. Do you have written training records?

29CFR 1910.1200, .1450, .1030 and virtually all other OSHA regulations require written training records which document date, subject, attendees and trainer.

8a. Do you have more than 10 employees?

8b. If "Yes": Do you have a written Emergency Contingency Plan?

29CFR 1910.38 outlines the requirements for an emergency contingency plan for those who employ more than 10 at any one time during the year.

8c. Are your Form OSHA Logs up-to-date and posted Feb 1 until April 30?

29CFR 1904 requires that employers of more than 10 at any one time in the year maintain occupational illness and injury reports on Form 301 or equivalent and summarize them on Form OSHA Log which is posted each Feb. 1 until April 30.

9a. Can you reasonably anticipate that any employees will be exposed to human blood this year because of their jobs?

9b. Have you assigned responsibility for first-aid to an employee?

9c. If "Yes": Do you have written Bloodborne Pathogen Exposure Control Plan?

9d. Have employees been trained in protective equipment and procedures?

29CFR 1910.1030 requires that employers develop an Exposure Control Plan, train employees, keep records, and offer Hepatitis B vaccinations if it can be reasonably anticipated that one or more employees could be exposed to human blood or

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blood products as a result of doing their assigned duties. If you have assigned first aid responsibilities to an employee you are required to have a Bloodborne Pathogen Program. Special waste management and use of approved disinfectants are also required. The key is "reasonable anticipation". Good Samaritan acts are not covered.

### **Janitorial & Chemical Storage Area Overview**

10. Is the area neat and clean, without spills on the floor?

29CFR 1910.22 requires that all work places be clean, orderly and sanitary.

11. Are there any containers without legible labels?

12. Do all secondary container labels list the product, the hazards and the manufacturer?

29CFR 1910.1200 requires that all containers of hazardous materials be labeled. The manufacturer's label is fine if legible. If materials are moved from the original to a "secondary" container, it must be labeled. The label must include the name of the material, a description of the hazard and the manufacturer's name. Just the name is not enough.

13. Is there an SDS on hand for each hazardous material?

14. Are SDSs accessible to all employees at all times?

15. Pick a product. Ask to see the SDS. Could an employee have found it in 4-5 minutes?

29CFR 1910.1200 requires that employers have an SDS for each hazardous material. Employees must have access to SDS's at all times during the work shift and be able to find a specific one in less than 5 minutes without asking for access to the collection.

### **General Work Areas Overview**

16. Is the fire extinguisher tag marked for monthly inspections and service in the last year?

29CFR 1910.157 requires that all portable fire extinguishers be visually inspected monthly and serviced annually. If the tag isn't marked it is difficult to prove inspections.

17. Is the area clean and uncluttered?

29CFR 1910.22 requires that all work places be clean, orderly and sanitary.

18. Are oily rags kept anywhere but in metal cans with closed lids?

29CFR 1910.38 requires employers to identify and correct fire hazards. Oily rags should be kept in a closed metal container.

19. Are coffee, drinks or food kept near any hazardous materials?

29CFR 1910.142 requires that no employee be allowed to have food or beverages in an area where they could be contaminated with toxic or infectious materials.

20. Are there any unlabeled containers?

29CFR 1910.1200 requires that all containers of hazardous materials be labeled. The manufacturer's label is fine if legible. If materials are moved from the original to a "secondary" container, it must be labeled. The label must include the name of the material, a description of the hazard and the manufacturer's name. Just the name is not enough.

21. Are any respirators stored which are not in bags or cabinets?

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29CFR 1910.134 requires that respirators be stored and maintained in a way that they will be cleaned, protected and ready for use. Respirators left in the open may absorb contaminants and become unusable.

22. Are gloves, goggles or safety glasses clean and in good repair?

29CFR 1910.132 requires that safety equipment be maintained in clean and sanitary condition and that it be used only if in good repair. Broken or dirty equipment raises questions in an inspector's mind and leads to a more intensive inspection.

23. Are there extension cords across aisles or walkways?

29CFR 1910.22 requires that all work place be clean, orderly and sanitary. Cords across aisles present a slip and fall hazard as well as a potential electrical hazard.

24. Look at ladders. Are there broken steps or parts in bad repair?

29 CFR 1910.25 requires employers to "inspect ladders frequently and those which have developed defects shall be withdrawn from service for repair or destruction and tagged or marked as "Dangerous, Do Not Use"."

25. Are there any broken or missing electrical switch or outlet covers?

29 CFR 1910.305 requires that pull boxes, junction boxes and fittings have plates or covers. Broken plates and covers do not provide adequate protection.

### **Employee Area Overview**

26. Is the OSHA Poster or state equivalent posted?

27. Are emergency phone numbers posted by telephones?

28. Is an evacuation route map posted?

29 CFR 1910.38.

29. Is there a fully stocked first aid kit?

29 CFR 1910.262 requires that there be a first aid kit stocked with supplies appropriate to the situation. It must be continuously stocked for any emergency.

30. Are lunches, snacks or drinks stored in a cabinet or refrigerator with chemicals?

29 CFR 1910.142 requires that no employee be allowed to have food or beverages in an area where it could be contaminated with toxic or infectious materials.

### **Employee Interview**

OSHA uses "performance based" standards for its enforcement of safety regulations. The best program on paper will mean nothing if your employees cannot do the right thing or do not know where to get information. Whether your employees can answer questions correctly (or not) is the test OSHA inspectors use to evaluate your compliance with OSHA rules.

31a. Please show me the SDS for (name a product) . Did the employee answer -- "What's an SDS?"

31b. Did the employee know where the SDS's are kept?

31c. Did it take less than 5 minutes for the employee to find the correct SDS?

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29 CFR 1910.1200 Employees should know what an SDS is and be able to locate a specific one in less than 5 minutes. SDS's should be indexed and stored in an organized fashion.

32a. When were you last trained on safety issues? Did the employee say "I don't remember" or "Never"?

32b. Has training been in the last year?

29 CFR 1910.1200 states that "employers shall provide information and training on hazardous chemicals...at the time of their initial assignment and whenever a new hazard is introduced into their work area." Some states also specifically require annual retraining.

33. If you had to evacuate the building where would you go for a head count? Did the employee know a pre-determined specific place?

29 CFR 1910.38 requires that emergency contingency plans specify the means of accounting for all employees after an evacuation of the facility.

### **OSHA Recordkeeping and Posting Requirements**

#### Purpose

To establish the policy and procedures regarding EAFab Corporation requirements for compliance with OSHA record keeping and posting guidelines for occupational injuries and illnesses.

#### Policy

All locations are to post the "Job Safety and Health Protection" poster (or state equivalent) in prominent places in the workplace.

OSHA requires that employers maintain a record of certain occupational injuries that occur at each business establishment on the OSHA Form Log 300 and 300A: Log of Work-Related Injuries and Illnesses and Summary of Work-Related Injuries and Illnesses. At the end of each year, OSHA requires the summary section of the OSHA Form Log 300A to be posted at each business establishment no later than February 1 and remain in place until April 30. EAFab Corporation will comply with this requirement. Pedro Quiroga is responsible for maintaining the information on the log in a current status and distributing the OSHA Form Logs.

The "Job Safety and Health Protection" poster and the Form Log and Summary of Occupational

Injuries and Illnesses can be ordered from OSHA, free of charge, at 303-844-1600

#### Record Retention

OSHA Form Log, January – November reports can be discarded upon receipt of the next monthly report.

Year-end OSHA Form Log 200, 300, 300A, and 301, retain for 5 years following the year to which they relate.

#### Common OSHA Violations:

- Failing to provide information about the Hazard Communication standard and the actual hazards of the chemical that are present.
- Not having a Hazard Communication Program. Not having a written fire prevention program.
- OSHA Log hasn't been properly maintained or is missing.
- Not having an SDS for every hazardous chemical in use.
- Not properly labeling all containers or groups of containers containing hazardous chemicals.
- Not marking exits or accesses to exits.

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- Improper building design, construction, maintenance or occupancy of a building or structure containing employees.
- Fire extinguishers not located or mounted in an accessible and safe location or not provided.
- Failure to provide fire extinguisher training.
- Improper wiring is present in one of the following ways: Unused openings and electrical boxes not closed. Conductors entering boxes are not protected from abrasion Improperly using a flexible cord in one of the following ways: Flexible cord smaller than a #12 was spliced
  - Solder used to splice a flexible cord
  - Used as a substitute for fixed wiring
  - Ran through holes in the ceiling and/or walls
  - Ran through doorways and/or windows
- Exposed or non-current carrying metal surfaces of fixed equipment are not grounded. Failing to provided electrical boxes and fittings with an approved cover, or failing to ground metal covers.
- Disconnects, circuit breakers, and other over-current devices aren't legibly and permanently labeled.

### Common OSHA Violations (cont.):

- Tongue guard on grinder is more than ¼" from the edge of the stone. Missing or inadequate machine guarding.
- Work rest is missing or more than 1/8" from a grinding wheel. Not providing a suitable eyewash or shower.
- Persons without respirators performing tasks that require respirators.
- Written standard operating procedures governing the use and selection of respirators shall be established.
- Employers shall make conveniently available protectors suitable for the task to be performed. Protective eye, head, face, body, feet and hand equipment shall be provided when there is reasonable probability of injury.
- A Platform four feet or more from the ground is not provided with a standard railing (and toe board) where required.
- Broken or damaged ladders being used.
- Furniture, barrels, boxes, or other devices used in lieu of ladders.

### BLOODBORNE PATHOGENS

It is imperative that management makes available the following information to all employees during a training session. All employees shall be trained on the risk of bloodborne pathogens and the proper handling of blood and other bodily fluids.

#### What everyone needs to know:

- Bloodborne pathogens are microorganisms carried by human blood (and other body fluids) and cannot be seen with the naked eye. They can be spread through contact with infected blood. If they get into the bloodstream, an individual may become infected and sick.
- Most personnel cannot reasonably anticipate coming into contact with blood during their day-to- day work duties. That's why it's imperative that all personnel understand the danger of exposure to bloodborne pathogens and ways to minimize their risk.
- Bloodborne pathogens may be present in blood and other materials, such as:

Body fluids containing visible blood semen and vaginal secretions

Torn or loose skin

- Bloodborne pathogens can cause infection by entering the body through:
  - Open cuts and nicks skin abrasions dermatitis

Acne

Mucous membranes of the mouth, eyes or nose

### **Workplace transmission**

The most common bloodborne pathogens are HIV, Hepatitis B, and Hepatitis C:

#### **HIV (AIDS)**

HIV, the human immuno-deficiency virus, attacks the body's immune system causing it to weaken and become vulnerable to infections that can lead to a diagnosis of acquired immune deficiency syndrome or AIDS.

HIV is transmitted mainly through sexual contact and sharing contaminated needles, but also may be spread by contact with infected blood and body fluids. HIV is NOT transmitted indirectly by touching or working around people who are HIV-positive.

Employees can prevent getting HIV by stopping the passage of the virus from a person who has HIV to them. In many instances, the employee has control over the activities that can transmit HIV. Since HIV is most frequently transmitted by sharing needles or through sexual intercourse, employees can stop transmission by refusing to engage in these behaviors.

#### **Hepatitis B**

Hepatitis is a general term used to describe inflammation (swelling) of the liver. Alcohol, certain chemicals or drugs, and viruses such as hepatitis A, B, C, D, E and G may cause hepatitis.

Hepatitis B is a serious, sometimes fatal disease, caused by a virus that infects and attacks the liver. The virus is transmitted through direct contact with infected blood, semen, or vaginal fluid. It is primarily spread through sexual contact.

In studies that examine transmission following injections into the skin, HBV is 100 times more contagious than HIV.

HBV can also be transmitted indirectly because it can survive on surfaces dried and at room temperature for at least a week! That's why contaminated surfaces are a major factor in the spread of HBV.

Each year there are up to 200,000 new infections and 5,000 hepatitis B related deaths in the U.S. (compared to 40,000 new HIV infections per year).

One in approximately 20 persons now has, or will one day have, hepatitis B Transmission of hepatitis B is preventable:

- Use latex condoms during sex
- Do not share needles
- Use universal precautions in the workplace
- Get the hepatitis B vaccination

#### **Hepatitis C**

Hepatitis is a general term used to describe inflammation (swelling) of the liver. Alcohol, certain chemicals or drugs, and viruses such as hepatitis A, B, C, D, E and G may cause hepatitis.

Hepatitis C is a serious, often fatal disease, caused by a virus that infects and attacks the liver. HCV is more common than hepatitis B and ranks slightly below alcoholism as a cause of liver disease. However, HCV is not as infectious as HBV because there are generally lower levels of the hepatitis C virus in the blood than of the hepatitis B virus

HCV is primarily transmitted through blood-to-blood contact -- most commonly through shared needles. The risk of transmitting HCV through sexual contact appears to be low, but precautions should be taken anyway. HCV cannot be transmitted by casual contact such as shaking hands or sharing bathroom facilities.

Up to 180,000 people may become infected with HCV each year in the U.S. Transmission of hepatitis C is preventable:

- Use latex condoms during sex
- Do not share needles
- Use universal precautions in the workplace

HOWEVER, unlike hepatitis B, currently there is NO VACCINE for hepatitis C. And also unlike HBV, there is no drug to prevent HCV infection after an exposure.

### **Guidelines for Handling Blood and Other Bodily Fluids:**

Many personnel are concerned that HIV may be spread through contact with blood and other body fluids when an accident occurs at work.

HIV, as noted earlier, has been found in significant concentrations in blood, semen, vaginal secretions, and breast milk.

Other body fluids, such as feces, urine, vomit, nasal secretions, tears, sputum, sweat, and saliva do not transmit HIV unless they contain visible blood. However, these body fluids do contain potentially infectious germs from diseases other than AIDS.

If an individual has contact with any of these body fluids, they are at risk of infection from these germs. It should be remembered that the risk of transmission of these germs depends on many factors, including the type of fluid contacted, the type of contact made, and the duration of the contact.

Very simply, it is good hygiene policy to treat all spills of body fluids as infectious in order to protect personnel from becoming infected with any germs and viruses. The procedures outlined below offer protection from all types of infection, and should be followed routinely.

### **How Should Blood and Body Fluid Spills be Handled?**

Whenever possible, employees shall wear disposable, waterproof gloves when they expect to come into direct hand contact with body fluids (when treating bloody noses, handling clothes soiled by incontinence, or cleaning small spills by hand). Gloves used for this purpose shall be put in a plastic bag or lined trash can, secured, and disposed of daily. Hands should always be washed after gloves are removed, even if the gloves appear to be intact.

If an employee has unexpected contact with body fluids or if gloves are not available (for example, applying pressure to a bleeding wound), the employee shall wash their hands and other affected skin for at least 30 seconds with soap and water after the direct contact has ended. This precaution is recommended to prevent exposure to other pathogens, not just HIV. As has been discussed, blood, semen, vaginal secretions, and blood-contaminated body fluids transmit HIV. Wiping a runny nose, saliva, or vomit does not pose a risk for HIV transmission.

### **Handwashing**

Proper handwashing requires the use of soap and warm water and vigorous washing under a stream of running water for at least 30 seconds. If hands remain visibly soiled, more washing is required. Scrubbing hands with soap will suspend easily removable soil and microorganisms, allowing them to be washed off.

Running water is necessary to carry away dirt and debris. Rinse your hands under running water and dry them thoroughly with paper towels or a blow dryer. When hand-washing facilities are not available, use a waterless antiseptic cleanser, following the manufacturer's directions for use.

### **Disinfectants**

An EPA approved germicide or a solution of 99 parts water to 1 part household bleach (or ¼ cup bleach to one gallon of water) will inactivate HIV, and should be used to clean all body fluid spills. Higher concentrations of bleach can be corrosive, and are unnecessary. Surfaces should be cleaned thoroughly prior to disinfection.

### Disinfecting Hard Surfaces and Caring for Equipment

Although hard surfaces have not been found to be a means of transmitting HIV, it is good hygiene policy to clean any soiled hard surfaces thoroughly. To do this, scrub the surface to remove any soil and apply a germicide (like the bleach/water solution described above) to the equipment used. Mops should be soaked in this solution after use and rinsed thoroughly with warm water. The solution should be promptly disposed of down a drainpipe. Remove gloves and discard them in appropriate receptacles, and wash hands as described above.

### Laundry Instructions for Clothing Soiled with Body Fluids

It is important to remember that laundry has never been implicated in the transmission of HIV. To ensure safety from transmission of other germs, contaminated clothes must be laundered with soap and water to eliminate potentially infectious agents. The addition of bleach will further reduce the number of potentially infectious agents. Clothing soaked with body fluids may be washed separately from other items. Pre-soaking may be required for heavily soiled clothing. Otherwise, wash and dry as usual, following the directions provided by the manufacturer of the laundry detergent. If the material can be bleached, add ½ cup of household bleach to the wash cycle. If the material is not colorfast, add ½ cup of non-chlorine bleach to the wash cycle.

It is good hygiene to treat all bodily fluids as infectious.

## 16.0 HAZARDOUS MATERIAL SPILL RESPONSE

### Purpose:

To establish the policy and procedures regarding Management and employee response and actions to a hazardous material spill or leak.

### Policy:

Federal, state, and local environmental laws dictate the specific handling and disposal methods of hazardous materials. Failure to comply with these laws can be very costly as well as environmentally negligent. EAFab Corporation will fully comply with all laws and regulations pertaining to the handling and disposal methods of hazardous materials. EAFab Corporation will train all employees in the proper procedures to follow and what to do when they encounter a hazardous spill or leak.

### Overview:

There are four classifications of hazardous chemicals that employees will likely come into contact with. These are:

#### IGNITABLES---TOXICS---CAUSTICS---REACTIVES

**IGNITABLES-** Ignitable products are either flammable or combustible. A spill of this nature creates two problems: one involving the potential for explosion and/or fire, and the other is the pollution of the environment. Examples are gasoline, paint thinners, petroleum solvents, alcohol, and adhesives.

**TOXICS-** These products are poisonous to the body and can cause illness or death. Examples are anti-freeze, paint, insecticides, fertilizer, and cleaning fluids.

**CAUSTICS-** A caustic is anything that burns, strongly irritates, corrodes or simply destroys the skin. Examples are acids and drain cleaners.

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**REACTIVES-** These products react violently when mixed with other products. The most common example is dry or liquid chlorine.

### Procedure:

Regardless of the nature of the spill, and before starting any cleanup activities, the employee(s) shall always secure the area around the spill. This is to include asking all other unnecessary employees and customers to move a safe distance away from the spill site.

The employee(s) shall also barricade or cordon off access to the site with tape or other visual barriers as needed to keep people from wandering into the spill site. Once the area is secure, Management shall be notified of the spill, its location, and when the area is clean. Management shall also notify public officials as necessary.

Employee(s) that are required and directed to conduct the cleanup shall always check the warning label of an unbroken container or the Material Safety Data Sheet (SDS) of the product involved in the spill or leak. Either the product label or the SDS should have cleanup procedures (Section VII of the SDS form). If not, or if time does not permit, the employee(s) shall consider the product extremely hazardous and use the following cleanup procedure:

Immediately shut off or eliminate all possible sources of ignition to include turning off anything that might produce a spark, flame, or friction.

A fire extinguisher must accompany all ignitable spill cleanups.

Cover the spill or leak with absorbent materials to reduce evaporation. Ventilate the area as well as possible by opening doors and windows.

If a spill is large, a fan shall be set up at least ten feet from the person cleaning up the spill. The fan shall be behind the person cleaning up the spill to blow the hazardous vapors away from their breathing area.

Wear safety goggles, gloves, disposable overshoes, and respirator (as necessary) prior to cleaning up the substance.

Small spills (one pint or less) can be cleaned up with absorbent materials (rags, paper towels, etc.), and placed into a plastic bag. These bags will be labeled as a flammable or combustible. The label on the bag must also have the following information: (1) the name of the product in the bag, (2) the quantity of material in the bag, (3) name of manufacturer, (4) and the date of the spill. The words "Hazardous Waste" must be clearly marked on the bag.

After the spill area is thoroughly dry, the spill area shall be scrubbed with a mild detergent using a broom or mop.

Disposal shall be in accordance to guidelines of local and state regulations. The bags shall then be placed in properly labeled containers for disposal. Pedro Quiroga shall ensure that storage and disposal shall be in accordance to guidelines of local and state regulations.

All efforts shall be taken to prevent hazardous material from entering sewage systems. If infiltration occurs, the fire department shall be notified.

Employee(s) in contact with the hazardous material shall be informed to recognize physical symptoms of accidental exposure (found in SDS Section VI). They shall be told that if they develop a skin rash, shortness of breath, asthma or any abnormal condition, they are to see a doctor immediately for an evaluation!

### **17.0 MOTOR VEHICLE OPERATION**

#### Policy:

Vehicles are to be operated in a safe manner consistent with local, state and federal laws. All accidents must be reported promptly according to procedures outlined below. The use of vehicles is limited to necessary Company business.

Personnel permitted to drive vehicles (e.g. Company automobiles, delivery vehicles, trucks, forklifts, tractors, loaders, back hoes, bobcats, mowers, etc.) must demonstrate the knowledge and ability to operate the equipment safely to the satisfaction of a qualified examiner.

#### Responsibilities:

##### **a. Driver's Supervisor**

1. Ensures that employees under his/her supervision who drive vehicles possess a valid state driver's license.
2. Ensures that vehicles are used only for official Company business and carries only Company employees who are authorized passengers.
3. Ensures all operators of powered industrial trucks are properly trained in the operation of the vehicles.
4. Ensures all vehicle drivers have the necessary medical examinations to ensure that the driver is physically qualified to operate the equipment.

##### **5. Regularly inspects vehicles and vehicle systems. b. Employee**

1. Carries the required, valid state driver's license
2. Inspects daily the vehicle before it is used. Items to be checked should include the forks, batteries, wheels, cables, lights, horns, back-up alarm, mirrors, steering, brakes, tires and controls.
3. Reports any defects or malfunctions to the supervisor immediately. Does not use a malfunctioning vehicle if the defect impairs the safe operation or use of the vehicle.
4. Operates equipment safely and in accordance to operating instructions.
5. Wears appropriate protective equipment at all times.

##### **c. Safety and Health Manager**

1. Maintains with the Supervisor, records of employee qualification tests.
2. Assists, when necessary, in selection and designation of jobs which require powered industrial trucks.
3. Periodically and routinely inspects vehicles and vehicle operations.
4. Coordinates with the supervisor, training programs for use and operation of the vehicles.

#### General Requirement:

##### **a. The examiner will administer a driving test to each prospective operator. b. The operator is required to:**

1. Point to and explain the following controls: lift, tilt, forward and reverse gears.
2. Perform all driving and loading/unloading maneuvers deemed necessary by the examining official.

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c. Upon satisfactory completion of the test procedures, a permit card shall be signed by the examiner and motor vehicle licensing official. The permit shall be valid as long as health requirements and safe operating techniques are met. Operating Rules and Practices:

- a. Safeguard pedestrians at all times. Do not drive a truck up to anyone standing in front of a stationary or fixed object (e.g., a bench or parked vehicle).
- b. Do not allow anyone to stand or pass under the elevated portion of any truck or lift.
- c. Unauthorized personnel shall not be permitted to ride on or operate powered industrial trucks. d. Never allow anyone to ride the forks, while the vehicle is in motion, or to lift them to a higher level except with a personnel platform.
- e. Do not put arms or legs between the uprights of the mast or outside the running lines of the truck.
- f. When leaving a powered industrial truck unattended, lift platform shall be fully lowered, controls shall be neutralized, power shut off, brakes set, key or connector plug removed. Block wheels if truck is parked on an incline.
- g. When you park the machine, lower the forks so they are flat on the ground. h. Maintain a safe distance from edge or ramps or platforms.
- i. Be sure of sufficient head room under overhead installations, lights, pipes, sprinkler systems, etc.
- j. Use an overhead guard as protection against falling objects.
- k. Use a load backrest extension whenever necessary to minimize the possibility of the load or part of it falling rearward.
- l. Report to supervisor all accidents involving personnel, building structures, and equipment. m. Obey all safety signs and markers.
- n. Never exceed trucks' rated capacity. o. Never travel with load above five feet.
- p. Avoid sudden stops and starts when loaded. q. Do not use fork extensions.

Use of Powered Mowers, Tractors, etc.

a. Operation is limited to qualified operators approved for use of specific equipment. Equipment may also be used by supervised individuals who are training for certification.

Equipment operators must wear approved safety shoes, and, as appropriate, eye and hearing protection.

### Motor Vehicle Accident:

a. In cases of accident:

1. Stop immediately.
2. Take steps to prevent another accident at the scene.
3. Call a doctor or ambulance, if necessary.
4. Notify police.
5. DO NOT sign any paper or make any statement as to who was at fault (except to your supervisor or to a Federal Government investigator).

6. Obtain the name and address of each witness.
7. Provide your name, address, place of employment, name of your supervisor, and upon request, show your operator's permit.
8. Make notes of the following:
  - a. Registration information for other vehicle(s) (owner's name, tag number and state, serial number, and vehicle description).
  - b. Information on other driver (name, address, operator's permit number, and expiration date).
  - c. Name and address of each person involved and extent of injury, if any.
  - d. Name and address of company insuring other vehicle(s).
  - e. General information such as location, time, measurements, weather, damage, etc.
9. As soon as possible, notify your supervisor and, if driving an interagency motor pool vehicle, the manager of the pool which issued the vehicle.
10. If the vehicle is unsafe to operate, have it towed to the nearest garage or service station.
11. If you are injured, notify the Safety and Health Manager.
12. Submit all reports and data to your supervisor within one working day.
13. If you are injured have the police notify your supervisor who will assume your responsibilities for reporting the accident.

### 100 Hour Maintenance Inspection:

The following items must be checked on a 100 hour maintenance inspection schedule by a qualified mechanic.

Steering and horn – check free play – ease of handling horn operation. Brakes – check brake power.

Tires – remove all foreign matter from tires.

Hoist cylinder – check for leaks and wear – clean off. Tilt cylinder – check for leaks and wear – clean off. Hydraulic oil – check dipstick – add oil, if necessary. Forks – check for cracked or bent forks.

Battery – check water level.

Acceleration control – check speed – time delay- general operation. Wires and terminals – check and tighten.

Lubricate – as specified on lubrication chart. Hoist motor – check brush wear.

Drive motor – check brush wear.

Controller – check contact tips – switches.

### **18.0 DRUG PREVENTION PLAN**

#### **Section I. Introduction**

##### **A. Prohibited Drug Policy.**

1. The Company has a long standing commitment to maintain the highest standards for employee safety and health and the use of controlled substances is contrary to these high standards.

2. This policy is also to bring the Company into compliance with federal law. The purpose of the drug prevention plan is to reduce accidents that result from the use of controlled substances, thereby reducing fatalities, injuries, and property damage.

3. The presence in the body of prohibited substances is not condoned. B. Implementation of Drug prevention plan.

1. The Company has implemented the Research and Special Programs Administration, Drug Testing Regulations as set forth in 49 CFR Part 199 and the Department of Transportation, Procedures for Transportation Workplace Drug Testing Programs as set forth in

49 CFR Part 40.

2. Implementation of the drug prevention plan was effective on . C. Background.

1. The catalyst for the drug prevention plan is Title 49 Code of Federal Regulations (CFR) Part 199 which requires Company's subject to 49 CFR Parts 192, 193, and 195, and their contractors to test their employees for prohibited drugs under the following work-related conditions:

- a. Pre-Employment b. Post-Accident
- c. Random
- d. Reasonable Cause e. Return-to-Duty

Title 49 CFR Part 40 specifies procedures which must be followed by the Company when conducting drug testing pursuant to regulations issued by agencies of the Department of Transportation (DOT).

NOTE: Specific Definitions: An Company must address the definition of "accident" under

§ 191.3 and/or § 195.50 and the definition of a "Covered Employee." The remaining definitions listed in Section D are optional, however, they may provide further clarification for employees on a number of common terms used throughout this drug prevention plan.

##### **D. Definitions.**

For purposes of this drug prevention plan the following definitions apply:

- 1. Accident means a reportable incident as follows:
  - (1) Death of any person.
  - (2) Bodily harm to any person resulting in one or more of the following:
    - (a) Loss of consciousness.
    - (b) Necessity to carry the person from the scene.

- (c) Necessity for medical treatment.
  - (d) Disability which prevents the discharge of normal duties or the pursuit of normal activities beyond the day of the accident.
- (3) Estimated property damage, including cost of clean-up and recovery, value of lost product and damage to the property of the Company or others, or both, exceeding \$1,000.
- (4) An event that results in an emergency shutdown of the Company.
  - (5) An event that is significant, in the judgment of the Company, even though it did not meet the criteria of paragraphs (1) or (2).
2. Blind Sample – a urine specimen submitted to a laboratory for quality control testing purposes, with a fictitious identifier, so that the laboratory cannot distinguish it from employee specimens, and which is spiked with known quantities of specific drugs or which is blank, containing no drugs.
3. Chain-of-Custody – procedures to account for the integrity of each urine specimen by tracking its handling and storage from point of specimen collection to final disposition of the specimen. These procedures shall require that an appropriate drug testing custody form from a Department of Health and Human Services (DHHS) certified laboratory be used from time of collection to receipt by the laboratory.
4. Collection Site – a designated clinic/facility where applicants or employees may present themselves for the purpose of providing a specimen of their urine to be analyzed for the presence of drugs.
5. Collection Site Person – a person who instructs and assists applicants and employees through the specimen collection process.
6. Company – an organization or commercial enterprise that uses this drug prevention plan.
7. Confirmation Test – a second analytical procedure to identify the presence of a specific drug or metabolite which is independent of the initial test and which uses a different technique and chemical principle from that of the initial test in order to ensure reliability and accuracy. Gas chromatography/mass spectrometry (GC/MS) is the only authorized confirmation method for cocaine, marijuana, opiates, amphetamines, and phencyclidine (PCP).
8. Covered employee – any person who performs work on Company property. Such person may be employed directly by the Company, or by a contractor engaged by the Company. As applied in the regulations, "employee" and "applicant for employment" have the same meaning for the purpose of these requirements.
9. Covered Function (safety-sensitive function) – an operation, maintenance, or emergency-response function that is performed during Company business.
10. Fail a Drug Test or Test Positive – the confirmation test result shows positive evidence of the presence under DOT procedures of a prohibited drug in the employee's or applicant's system.
11. Initial Test – an immunoassay screen to eliminate "negative" urine specimens from further consideration.
12. Pass a Drug Test or Test Negative – that initial testing or confirmation testing under DOT procedures does not show evidence of the presence of a prohibited drug in the employee's or applicant's system.
13. Prohibited Drug – marijuana, cocaine, opiates, phencyclidine, and amphetamines.

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14. Refusal to Submit – refusal by an individual to provide a urine sample after receiving notice of the requirement to be tested in accordance with the Company's anti-drug program.

15. SAMHSA – Substance Abuse and Mental Health Services Administration, formerly National Institute on Drug Abuse (NIDA), was established by the Department of Health and Human Services in 1986 to regulate laboratories performing analytical tests (drug tests) on human body fluids for employment purposes in the public sector.

### **E. Company Responsibilities.**

1. Drug Program Manager (DPM): Appendix A contains the name, address, and phone number of the responsible individual(s). The DPM or other Company designated individual shall be responsible for the preparation of a drug testing drug prevention plan which complies with requirements of the Department of Transportation regulations as set forth in 49

CFR Parts 199 and 40. The DPM shall be responsible for providing oversight and evaluation on the plan; providing guidance and counseling; reviewing of all discipline applied under this plan for consistency and conformance to human resources policies and procedures; scheduling random drug testing and return-to-duty testing; maintaining a locked file system on drug testing results; and overseeing the employee assistance program (EAP) as it is defined in 49 CFR Part

199.19. The Company shall ensure that all covered employees are aware of the provisions and coverage of the Company's drug prevention plan.

2. Supervisors: Company individuals responsible for observing the performance and behavior of employees; observation/documentation of events suggestive of reasonable cause; responsible for requests of second supervisor for substantiation and concurrence for reasonable cause testing, if applicable.

3. Employees: Each employee has the responsibility to be knowledgeable of the requirements of the Company's drug prevention plan and to fully comply with the provisions of the plan.

## **Section II. Drug Testing Requirements**

### **A. Applicability.**

1. Individuals Subject to Drug Testing: Any applicant/employee who would performs work and is employed by the Company. The person may be employed by the Company, be a contractor engaged by the Company, or be employed by such a contractor. Refer to Appendix B for specific employee titles subject to testing under this program.

2. Procedure for Notifying Employees: This anti-drug testing plan shall be included in the appropriate Company manual. Upon receipt of the Company's drug prevention plan, each manager shall post the plan in a prominent location that is readily accessible to all covered employees. All covered employees will be provided a complete copy of the drug prevention plan or a condensed/summarized version of the plan. This document must indicate where the entire plan may be obtained for review by an employee.

3. Substances for Which Testing Must Be Conducted: The Company shall test each employee who performs a function listed in Appendix B for evidence of the following substances:

Marijuana, Cocaine, Opiates, Phencyclidine, and Amphetamines

NOTE: Under § 199.7(a) Company's must provide procedures for notifying employees of the coverage and provisions of the plan. An Company may satisfy this requirement by either of the following methods: (1) Provide each employee with a copy of the Company drug prevention plan; (2) Provide a summarized version of the drug prevention plan; or, (3) Display the drug prevention plan or summarized version on an employee bulletin board or in an employee break/locker room. If the entire plan is not provided to employees, then the summarized version shall indicate where a complete copy of the Company's drug prevention plan is available for review by the employees.

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### **B. Drug Tests Required.**

1. **Pre-Employment Testing.** A pre-employment drug test must be conducted before an individual is hired or contracted and when an individual is transferred/promoted from a non- covered to a covered position. This also applies to employees returning from a leave of absence who have not been participating in the drug prevention plan and subject to the random selection process. A negative test result is required prior to performing covered functions

### **2. Post-Accident Testing.**

a. The Company shall promptly determine if the employee's performance contributed to the "accident" or cannot be completely discounted as a contributing factor to the accident. Each of these employees shall be drug tested as soon as possible but no later than 32 hours after the accident. The Company must take all reasonable steps to obtain a urine specimen from an employee after an accident, as defined above, but any injury should be treated first.

b. The following steps will be used to guide the supervisor to a satisfactory outcome in a post-accident situation.

(1) Verify the post-accident decision. Does the definition of accident in Section I apply to the current situation? Does the possibility exist that the employee's performance contributed to the accident or cannot be completely discounted as a contributing factor to the accident? Anonymous tips must be taken seriously, but should not be the sole reason to initiate a request for a specimen. If witnesses saw a specific event or behavior, ask them to describe what they saw. How far away were they? Before proceeding further, obtain approval from the division manager/department head or designee to proceed with post-accident testing.

(2) Isolate and inform the employee. Remove the employee from the covered position or work place. Explain that you have reason to believe their performance contributed to the accident or cannot be completely discounted as a contributing factor to the accident.

(3) Transport the employee. The potentially affected employee will not be allowed to proceed alone to or from the collection site. In addition to the safety concerns for the employee, accompanying the employee also assures that there is no opportunity en route to the collection site for the employee to ingest anything that could affect the test result or to acquire "clean" urine from another person.

(4) Document the events. Record the activity performed that supports the determination to conduct a post-accident test. This documentation of the employee's activity should be prepared and signed by the supervisor within 24 hours of the accident or before the results of the tests are released, whichever is earlier, if possible.

(5) Denial should be an expected reaction. If a person knows they will test positive, they may give many explanations and protestations, wanting to avoid drug testing. If they are not under the influence or affected by a prohibited drug, vehement denial also would be expected. Listen to the employee and carefully evaluate the employee's explanation. Remember, a request for urine specimen is not an accusation; it is merely a request for additional objective data. To the employee it may feel like an accusation; so it is important to stress that this is merely a request for additional data.

(6) Following collection. After returning from the collection site, the employee should not be allowed to perform covered functions pending the results of the drug test.

### **3. Random Testing.**

a. The primary purposes of random testing are to deter prohibited drug use and to ensure a drug free workforce. DOT regulations require that covered employees shall be subject to drug testing on an unannounced and random basis. The Company shall conduct a number of tests equal to at least 50 percent of all covered employees each calendar year, spread reasonably over a 12-month period. The Company will conduct random selection and testing on a schedule. (Specify period - e.g., weekly, bi-monthly, monthly, quarterly).

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- b. The following is a discussion of the key aspects of the random testing selection process. (1) Employees remain in the random selection pool at all times, regardless of whether or not they have been previously selected for testing.
- (2) Employees shall be selected for testing by using a computer-based random number generator or equivalent random selection method that is matched with an employee's social security number or employee ID number.
- (3) The process will be unannounced as well as random. Employees will be notified that they have been selected for testing after they have reported for duty on the day of collection.
- (4) Employees will be selected for random testing based on the number of covered employees at the time and the necessary testing rate.
- (5) Specimen collection will be conducted on different days of the week throughout the annual cycle to prevent employees from matching their drug use patterns to the schedule for collection.
- c. Steps for random testing:
- (1) The DPM (or designee), on a pre-determined date, shall use the random selection procedures to compile a list of covered employees selected for random testing during that testing cycle.
- (2) The DPM (or designee) shall ensure that the list of social security numbers or employee identification numbers will identify the correct employees who are to be randomly tested during the testing cycle.
- (3) It is the intent of this plan to notify employees of their selection for random testing after they have reported for duty.
- (a) The list of employees to be tested will be provided to the appropriate division manager, department head, or supervisor.
- (b) The list of employees selected will be retained by the DPM (or designee) in a secure location.
- d. Notification of employees:
- (1) The appropriate manager/supervisor will notify the employee to be tested to report to the manager/supervisor's office at a specified time.
- (2) The employee will not be notified of the test until after reporting for duty.
- (3) Employees shall report immediately to the collection site or to the collection site within 30 minutes, plus travel time, once notified by the appropriate Company official.
4. Reasonable Cause Testing. Reasonable cause testing is designed to provide management with a tool (in conjunction with supervisor training on the signs and symptoms of drug use) to identify drug affected employees who may pose a danger to themselves and others in their job performance. Employees may be at work in a condition that raises concern regarding their safety or productivity. Supervisors must then make a decision as to whether there is reasonable cause to believe an employee is using or has used a prohibited drug.
- a. The decision to test must be based on a reasonable and articulate belief that the employee is using a prohibited drug on the basis of specific, contemporaneous physical, behavioral, or performance indicators of probable drug use. At least two of the employee's supervisors, one of whom is trained in detection of the possible symptoms of drug use, shall substantiate and concur in the decision to test an employee. The concurrence by both supervisors can be accomplished by phone, by discussions a few hours later, or by having another supervisor travel to the job site, if only one supervisor is available at that particular job site.

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**NOTE:** For small companies with 50 or fewer employees subject to testing only one supervisor of the employee trained in detecting possible drug use symptoms shall substantiate the decision to test.

b. In making a determination of reasonable cause, the factors to be considered include, but are not limited to the following:

- (1) Adequately documented pattern of unsatisfactory work performance, for which no apparent non-impairment related reason exists, or a change in an employee's prior pattern of work performance, especially where there is some evidence of drug related behavior on or off the work site.
- (2) Physical signs and symptoms consistent with substance abuse.
- (3) Evidence of illegal substance use, possession, sale, or delivery while on duty.
- (4) Occurrence of a serious or potentially serious accident that may have been caused by human error, or flagrant violations of established safety, security, or other operational procedures.

**NOTE:** This information is presented as guidance in determining whether reasonable cause exists to require an employee to submit to a drug test.

c. The following steps will be used to guide the supervisor to a satisfactory outcome in a reasonable cause situation.

- (1) Verify the reasonable cause decision. Anonymous tips must be taken seriously but should not be the sole reason to initiate a request for a specimen. Hearsay is not an acceptable basis for reasonable cause referral. If witnesses saw a specific event or behavior, ask them to describe what they saw. How far away were they? How long did they observe the person? What, if anything, caused them to believe it was substance abuse related? On what basis did they reach their conclusion? Before proceeding further, obtain approval from the division manager/department head or designee to proceed with reasonable cause testing.
- (2) Isolate and inform the employee. Remove the employee from the work location. Explain that there is reasonable cause to believe the employee's performance is being affected by some substance. Ask the employee to explain the suspected behavior and to describe the events that took place from their perspective. Ask if there is any medication or physical condition that would explain the behavior. A persuasive explanation may or may not deter you from asking for a urine sample. If there is still a reasonable belief that drugs are a factor in the situation/incident, a request for testing should be made; if no reasonable belief is determined then no request for testing should not be made. If the decision to test is made, inform the employee that they are being requested to accompany the appropriate official to the specimen collection site to provide a urine specimen. Inform the employee of the consequences of refusal to submit to testing.
- (3) Review your findings. During the conversation, observe physical and mental symptoms. Be sure to document any characteristics that either support or contradict initial information. In all cases, a reasonable cause decision must be made by two of the employee's supervisors. This creates greater objectivity, provides additional observation, and generally strengthens the defensibility of the reasonable cause determination.
- (4) Transport the employee. The potentially affected employee should not be allowed to proceed alone to or from the collection site. In addition to the safety concerns for the employee, accompanying the employee also assures that there is no opportunity en route to the collection site for the employee to ingest anything that could affect the test result or to acquire "clean" urine from another person.
- (5) Document the events. Record the behavioral signs and symptoms that support the determination to conduct a reasonable cause test. This documentation of the employee's conduct should be prepared and signed by the witnesses within 24 hours of the observed behavior or before the results of the tests are released, whichever is earlier.

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(6) Denial should be an expected reaction. If a person knows they will test positive, they may give many explanations and protestations, wanting to avoid drug testing. If they are not under the influence or affected by a prohibited drug, vehement denial also would be expected. Listen to the employee and carefully evaluate the employee's explanation. Remember, a request to provide a urine specimen is not an accusation; it is merely a request for additional objective data. To the employee it may feel like an accusation; so it is important to stress that this is merely a request for additional data.

(7) Following collection. After returning from the collection site, the employee shall not perform duties pending the receipt of the drug test results. The employee should make arrangements to be transported home. The employee should be instructed not to drive any motor vehicle due to the reasonable cause belief that they may be under the influence of a drug.

If the employee insists on driving, the proper local enforcement authority should be notified that an employee who we believe may be under the influence of a drug is leaving the Company premises driving a motor vehicle.

5. Return-to-Duty Testing. An employee who refuses to take or fails a drug test may not return to duty until the employee passes a drug test and the Medical Review Officer (MRO) and the Company have determined that the employee may return to duty. An employee who returns to duty shall be subject to a reasonable program of follow-up drug testing, without prior notice, for up to 60 months after his or her return to duty.

NOTE: Return-to-Duty testing is not an option under this plan if the Company terminates an employee who has tested positive or refuses to test. A statement to this effect would appear under return-to-duty testing section of the plan.

### **Section III. Use of Employee who Fails/Refuses a Drug Test**

A. General. Compliance with this drug testing plan is a condition of employment. Refusal to take a required drug test or failure of a drug test shall result in removal from performing covered functions. Additional disciplinary action up to and including termination may result.

B. Prohibitions On Use. The Company shall not use, in a function covered by Part 199, anyone who:

1. Fails a drug test as verified by the MRO, or
2. Refuses to take a drug test required by this plan.

C. Options For Return-to-Duty. An employee will be given an opportunity to retain his or her employment, provided they first:

1. Have been recommended by the MRO for return to duty,
2. Pass a DOT drug test, and
3. Not failed a drug test required by Part 199 after returning to duty.
4. Enter into a Company approved evaluation/rehabilitation program and successfully completes the program.

NOTE: Rehabilitation is not mandated by DOT regulations and paragraph 4 is based on Company policy and procedures.

### **Section IV. Specimen Collection Requirements**

A. Scope.

1. The procedures contained herein and in Appendix C shall be complied with by the designated collection sites and all covered employees who report for drug testing. The Company will ensure that collection sites utilized by its employees are aware of their responsibilities with regard to the specimen collection process. The collection site shall post or have readily available instructions which explain the specimen collection process. If information on collector, donor, and Company

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representatives responsibilities are provided under separate cover by the Company or the collection site, then the above requirement is not required.

2. The procedures address the requirements contained in § 40.25. B. General.

1. The collection site shall have all necessary personnel, materials, equipment, facilities, and supervision to provide for the collection, security, temporary storage, and shipping or transportation of urine specimens to a certified drug testing laboratory designated by the Company. An independent medical facility may also be utilized as a collection site provided the other applicable requirements of Appendix C are met.

2. A designated collection site shall be any suitable location where a specimen can be collected under conditions set forth in Appendix C, including a properly equipped mobile facility. A designated collection site shall have an enclosure within which private urination can occur, a toilet for completion of urination, and a suitable clean surface for writing. The site must also have a source of water for washing hands, which if practicable, should be external to the enclosure where urination occurs

3. The Company shall ensure that all collection site personnel have completed training on specimen collection procedures or are qualified as a licensed medical professional. If non-medical collection sites are utilized, then the Company shall ensure that appropriate training requirements are documented.

4. The direct supervisor of a covered employee shall not serve as a collector in conducting any required drug test unless it is impracticable.

5. Detailed Specimen Collection Procedures are outlined in Appendix C. These collection procedures are to be provided to the medical collection site personnel.

6. A copy of the standard written instructions setting forth the donor's or employee representative's responsibilities during the specimen collection must be provided prior to the test being conducted.

### **Section V. Drug Testing Laboratory**

A. NIDA Laboratory.

1. The Company shall use a drug testing laboratory certified under DHHS Mandatory Guidelines for Federal Workplace Drug Testing Programs; 53 FR 11970, April 11, 1988 and subsequent amendments.

2. The laboratory shall provide services in accordance with Part 40 and Part 199. The name and address of each NIDA laboratory used by the Company is contained in Appendix A.

3. The laboratory shall permit inspections by the Company, the RSPA Administrator, or if the Company is subject to the jurisdiction of a state agency, a representative of the state agency.

B. Laboratory Procedures. These procedures are addressed in Appendix D.

### **Section VI. Blind Performance Test Procedures**

A. General.

1. The Company shall use blind testing quality control procedures as provided in this section.

2. The Company shall submit three blind performance test specimens for each 100 employee specimens it submits, up to a maximum of 100 blind performance test specimens submitted per quarter. RSPA may increase this per quarter maximum number of samples if doing so is necessary to ensure adequate quality control of employers or consortiums with very large numbers of employees.

### **B. Covered Employees.**

1. Companies with fewer than 2,000 covered employees may submit blind performance test specimens as provided in the above paragraph. Such companies may also submit only blank samples or may submit two separately labeled portions of a specimen from the same non-covered employee.

2. For companies with 2,000 or more covered employees, approximately 80 percent of the blind performance test samples shall be blank (i.e., containing no drugs or otherwise as approved by DOT) and the remaining samples shall be positive for one or more drugs per sample in a distribution such that all the drugs to be tested are included in approximately equal frequencies of challenge. The positive samples shall be spiked only with those drugs for which the employer is testing. This paragraph shall not be construed to prohibit spiking of other (potentially interfering) compounds, as technically appropriate, in order to verify the specificity of a particular assay.

#### **NOTES:**

(1) The Company shall determine whether they must comply with paragraph 1 or 2 above with regard to the total number of DOT covered employees.

(2) Consortiums shall be responsible for the submission of blind samples on behalf of their members. The blind sampling rate shall apply to the total number of samples submitted by the consortium for all DOT covered employees.

### **C. Investigations and False Positive.**

1. RSPA shall investigate, or shall refer to DHHS for investigation, any unsatisfactory performance testing result and, based on this investigation, the laboratory shall take action to correct the cause of the unsatisfactory performance test result. A record shall be made of the investigative findings and the corrective action taken by the laboratory, and that record shall be dated and signed by the individual responsible for the day-to-day management and operation of the drug testing laboratory. RSPA shall send the document to the Company as a report of the unsatisfactory performance testing incident. RSPA shall ensure notification of the finding to DHHS.

2. Should a false positive error occur on a blind performance test specimen and the error is determined to be an administrative error (clerical, sample mix-up, etc.), the Company shall promptly notify RSPA. RSPA and the Company shall require the laboratory to take corrective action to minimize the occurrence of the particular error in the future, and, if there is reason to believe the error could have been systemic, RSPA may also require review and reanalysis of previously run specimens.

3. Should a false positive error occur on a blind performance test specimen and the error is determined to be a technical or methodological error, the Company shall instruct the laboratory to submit all quality control data from the batch of specimens which included the false positive specimen to RSPA. In addition, the laboratory shall retest all specimens analyzed positive for that drug or metabolite from the time of final resolution of the error back to the time of the last satisfactory performance test cycle. This retesting shall be documented by a statement signed by the individual responsible for day-to-day management of the laboratory's urine drug testing. RSPA may require an on-site review of the laboratory which may be conducted unannounced during any hours of operation of the laboratory. DHHS has the option of revoking or suspending the laboratory's certification or recommending that no further action be taken if the case is one of less serious error in which corrective action has already been taken, thus reasonably assuring that the error will not occur again.

## **Section VII. Review of Drug Testing Results**

### **A. General.**

1. The Company shall have on staff or contract for the services of an MRO. The MRO shall be a licensed physician with knowledge of drug abuse disorders. The MRO shall review all negative and positive drug test results and interview individuals

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tested positive to verify the laboratory report before the Company is notified. The review of a negative test may be an administrative process to ensure the chain-of-custody procedures were intact. The MRO shall also recommend to the Company whether and when an employee who refused to take or did not pass a drug test may return to work and schedule follow-up unannounced drug testing for a period of 60 months.

2. The MRO has contracted with the Company to provide the services of MRO for this drug testing policy in accordance with the requirements of §§ 40.33 and 199.15. A listing of the Company MRO(s) which includes their name(s) and address(es) is contained in Appendix A.

### **B. Reporting and Review of Results.**

1. The MRO shall review confirmed positive results. An essential part of the drug testing program is the final review of confirmed positive results from the laboratory. A positive test result does not automatically identify an employee/applicant as having used drugs in violation of a DOT regulation. An individual with a detailed knowledge of possible alternate medical explanations is essential to the review of results. This review shall be performed by the MRO prior to the transmission of results to Company administrative officials. The MRO review shall include review of the chain-of-custody to ensure that it is complete and sufficient on its face

2. The duties of the MRO with respect to negative results are purely administrative.

### **C. Qualifications and Responsibilities.**

1. The MRO shall be a licensed physician with knowledge of substance abuse disorders and may be an employee of the Company or a private physician retained for this purpose. The MRO shall not be an employee of the laboratory conducting the drug test unless the laboratory establishes a clear separation of functions to prevent any appearance of a conflict of interest including assuring that the MRO has no responsibility for, and is not supervised by or the supervisor of, any persons who have responsibility for the drug testing or quality control operations of the laboratory.

2. The role of the MRO is to review and interpret confirmed positive test results obtained through the Company testing program. In carrying out this responsibility, the MRO shall examine alternate medical explanations for any positive test result. This action could include conducting a medical interview with the individual and review of the individual's medical history, or review of any other relevant biomedical factors. The MRO shall review all medical records made available by the tested individual when a confirmed positive test could have resulted from legally prescribed medication. The MRO shall not, however, consider the results of urine samples that are not obtained or processed in accordance with DOT regulations.

3. The MRO may require the original specimen be reanalyzed to determine the accuracy of the test result. The MRO may verify that the laboratory report and assessment are correct.

### **D. Positive Test Results.**

1. Prior to making a final decision to verify a positive test result, the MRO shall give the individual an opportunity to discuss the test result with him/her.

2. The MRO shall contact the individual directly, on a confidential basis, to determine whether the employee wishes to discuss the test result. A staff person under the MRO's supervision may make the initial contact, and a medically licensed or certified staff person may gather information from the employee. Except as provided in paragraph 5 of this section, the MRO shall talk directly with the employee before verifying a test as positive.

3. If, after making all reasonable efforts and documenting them, the MRO is unable to reach the individual directly, the MRO shall contact a designated management official who shall direct the individual to contact the MRO as soon as possible. If it becomes necessary to reach the individual through the designated management official, such official shall employ procedures that ensure, to the maximum extent practicable, that the requirement of the employee to contact the MRO is held in confidence.

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4. If, after making all reasonable efforts, the designated management official is unable to contact the employee, the Company may place the employee on temporary medically unqualified status or medical leave.

The MRO may verify a test as positive without having communicated directly with the employee about the test in three circumstances:

- a. The employee expressly declines the opportunity to discuss the test;
- b. The designated Company representative has successfully made and documented a contact with the employee and instructed the employee to contact the MRO (See paragraphs (D)(3) and (4) of this section), and more than five days have passed since the date the employee was successfully contacted by the designated Company representative; or
- c. Other circumstances provided for in RSPA's drug testing regulations.

6. If a test is verified positive under the circumstances specified in paragraph 5 of this section, the employee may present to the MRO information documenting that serious illness, injury, or other circumstances unavoidably prevented the employee from timely contacting the MRO. The MRO, on the basis of such information, may reopen the verification allowing the employee to present information concerning a legitimate explanation for the confirmed positive test. If the MRO concludes that there is a legitimate explanation, the MRO declares the test to be negative.

7. Following verification of a positive test result, the MRO shall, as provided in the Company's policy, refer the case to the DPM (or designee) for action.

### **E. Verification for Opiates; Review for Prescription Medication.**

1. Before the MRO verifies a confirmed positive result for opiates, the MRO shall determine that there is clinical evidence—in addition to the urine test—of unauthorized use of any opium, opiate, or opium derivative

(e.g., morphine/codeine).

2. This requirement does not apply if the Company's GC/MS confirmation testing for opiates confirms the presence of 6-monoacetylmorphine.

### **F. Reconfirmation Analysis Authorization.**

1. Should any question arise as to the accuracy or validity of a positive test result, only the MRO is authorized to order a reconfirmation of the original sample and such retests are authorized only at laboratories certified by DHHS.

2. The MRO shall authorize a reconfirmation of the original sample if requested in writing by the employee within 60 days of the employee having received actual notice of the positive test.

3. If the retest is negative, the MRO shall cancel the test.

- G. Results Consistent with Legal Drug Use. If the MRO determines there is a legitimate medical explanation for the positive test result, the MRO shall report the test result to the Company as negative.

### **H. Results Scientifically Insufficient.**

1. The MRO, based on review of inspection reports, quality control data, multiple samples, and other pertinent results, may determine that the result is scientifically insufficient for further action and declare the test specimen negative. In this situation the MRO may request reanalysis of the original sample before making this decision. The MRO may request that reanalysis be performed by the same laboratory or, as provided in paragraph F above, that an aliquot of the original specimen be sent for reanalysis to an alternate laboratory which is certified in accordance with the DHHS guidelines.

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2. The laboratory shall assist in this review process as requested by the MRO by making available the individual responsible for day-to-day management of the urine drug testing laboratory or other employee who is a forensic toxicologist or who has equivalent forensic experience in urine drug testing, to provide specific consultation as required by the Company. The Company shall include in any required annual report to RSPA a summary of any negative findings based on scientific insufficiency but shall not include any personal identifying information in such reports.

### **I. Disclosure of Information.**

1. Except as provided in this paragraph, the MRO shall not disclose to any third party medical information provided by the individual to the MRO as a part of the testing verification process.

2. The MRO may disclose such information to the Company, DOT or other Federal safety agency, or a physician responsible for determining the medical qualification of the employee under the appropriate DOT regulation, as applicable, only if—

a. An applicable DOT regulation permits or requires such disclosure;

b. In the MRO's reasonable medical judgment, the information could result in the employee being determined to be medically unqualified under an applicable DOT rule; or

c. In the MRO's reasonable medical judgment, in a situation in which there is no DOT rule establishing physical qualification standards applicable to the employee, the information indicates that continued performance by the employee of his or her covered function could pose a significant safety risk.

3. Before obtaining medical information from the employee as part of the verification process, the MRO shall inform the employee that information may be disclosed to third parties as provided in this paragraph and the identity of any parties to whom information may be disclosed.

## **Section VIII. Retention of Samples**

A. General. Samples that yield positive results on confirmation must be retained by the laboratory in properly secured, long-term, frozen storage for at least 365 days.

### **B. Retention Period.**

1. Within this 365 day period, the employee or designated representative, RSPA or other state agencies with jurisdiction, or the Company may request in writing that the sample be retained for an additional period.

2. If the laboratory does not receive the request to retain the sample within the 365 day period, the sample may be discarded.

## **Section IX. Retesting of Samples**

A. General. An employee/applicant may request in writing to the MRO a retest of the sample within 60 days of notification of a positive test result from the MRO.

B. Retest Provisions. The employee may specify that the specimen be retested by the original laboratory or sent to another certified laboratory. The employee may be required to pay in advance for the cost of the shipment and reanalysis of the sample. The employee will be reimbursed for the costs incurred in the reanalysis if the retest of the specimen is negative. If the employee requests a retest at a second laboratory, then the original laboratory must follow the approved custody and control procedures in transferring a portion of the specimen.

C. Detection Levels. Because some analytes deteriorate or are lost during freezing and/or storage, quantitation for a retest is not subject to a specific cutoff requirement but must provide data sufficient to confirm the presence of the drug or metabolite.

### **Section X. Employee Assistance Program (EAP)**

#### **A. Scope of Program.**

The EAP will provide education and training on drug use to all employees. The education shall include:

1. Informational material displayed on bulletin boards, employee break rooms, locker rooms, etc., and distributed to employees.
2. A community service hot-line telephone number for employee assistance displayed on bulletin boards and distributed to employees, and
3. Distribution of the Company's policy regarding the use of prohibited drugs to all new employees. The policy shall be displayed in prominent places throughout the Company (i.e., employee bulletin board, break room, locker rooms).

#### **B. Supervisor Training.**

1. Supervisory personnel responsible for those employees covered under Part 199 will receive training under the drug prevention plan. The training shall include at least one 60- minute period of training on the specific, contemporaneous physical, behavioral, and performance indicators of probable drug use. This training shall be for supervisors who may determine whether an employee must be drug tested for reasonable cause.

### **Section XI. Recordkeeping Procedures**

#### **A. General.**

1. The DPM (or designee) shall maintain a locked file system which will contain drug test results. This file shall be maintained as Confidential. Employee files shall be handled on strict "need to know" basis.
  2. Drug tests results shall not be included in personnel files. Information regarding an individual's drug testing result or rehabilitation may be released only upon written consent of the individual, except:
    - a. Such information must be released regardless of consent to RSPA or other government agency as a part of an accident investigation;
    - b. Such information may be disclosed regardless of consent in a lawsuit, grievance, or other proceeding initiated by or on behalf of the individual and arising from a verified positive drug test.
- B. Statistical Data. Statistical data related to drug testing and rehabilitation that is non name-specified and training records may be released to RSPA or other governmental agency upon request.

#### **C. Record Retention.**

The records that must be maintained are:

1. Records that demonstrate the collection process conforms to § 40.25 shall be retained for a 3-year period.
2. Employee drug test results that show positive and test type (pre-employment test, random test, post-accident test, or post-rehabilitation test), and records that demonstrate rehabilitation (including the MRO's determination). These records shall be retained for a 5-year period and must include the following information:
  - a. Job classification and functions of employee.
  - b. Prohibited drug(s) used.
  - c. Disposition of employee (i.e., rehab, suspension, termination, etc.)

3. Employee drug tests that demonstrate negative results shall be retained for a period of 1 year.
4. A record indicating the total number of employees tested and the results of tests separated into categories shall be retained for a 5-year period.
5. Training records confirming that supervisors and employees have been trained as required under § 199.19, and copies of training material used shall be retained for a 3-year period.

### **Section XII. Contractor Monitoring**

- A. General. The Company shall include a clause in contracts that drug testing, education and training shall be addressed by the contractor.
- B. Records and Access. Contractors shall retain copies of appropriate records required by Part 199 and Part 40. The records and access to the contractor's property shall be readily accessible for inspection by the Company, RSPA, and representatives of those state agencies under which jurisdiction the Company operates.
- C. Monitoring Procedures. Confirmation of contractor compliance - see Appendix E for Contractor Monitoring Procedures.
- D. Contractor Coverage. The Company can, as an alternative to the above guidance, provide coverage for the contractor's employees by including them in the Company's drug testing program and random pool for the duration of the contract.

### **Specimen Collection Procedures**

- A. Scope.
  1. The drug testing custody and control form is to be used as a permanent record on which identifying data on the employee and on the specimen collection and transfer process are retained. The drug testing plan requires testing for marijuana, cocaine, opiates, amphetamines, and phencyclidine.
  2. Urine specimens collected under this plan may be used only to test for controlled substances designated or approved for testing as described in this appendix and shall not be used to conduct any other analysis or test.
  3. This plan does not prohibit procedures reasonably incident to analysis of the specimen for controlled substances (e.g., determination of pH or tests for specific gravity, creatinine concentration, or presence of adulterants).
- B. Procedures.
  1. The collection site person shall utilize the drug testing chain-of-custody (COC) form provided by Company; this form must address the requirements as contained in § 40.23. The COC form must comply with the provisions as contained in 49 CFR Part 40 with regard to the information that must be contained on the form.
  2. The drug testing custody and control form may include such additional information as may be required for billing or other legitimate purposes necessary to the collection, provided that personal identifying information on the donor (other than the social security number or employee identification number) may not be provided to the laboratory. Donor medical information may appear only on the copy provided to the donor.

NOTE: The new custody and control form is available and therefore, the specific instructions on how to complete the form have been deleted.

### **C. Security.**

1. The purpose of this paragraph is to prevent unauthorized access which could compromise the integrity of the collection process of the specimen.
2. The designated collection site is to be secure. If a collection site facility is dedicated solely to urine collection, it shall be secure at all times. If a facility cannot be dedicated solely to drug testing, the portion of the facility used for testing shall be secure during drug testing.
3. A facility normally used for other purposes, such as a public rest room or hospital examining room, may be secured by visual inspection to ensure other persons are not present and undetected access (e.g., through a rear door not in the view of the collection site person) is not possible. Security during collection may be maintained by effective restriction of access to collection materials and specimens. In the case of a public rest room, the facility must be posted against access during the entire collection procedure to avoid embarrassment to the employee or distraction of the collection site person.
4. If it is impractical to maintain continuous physical security of a collection site from the time the specimen is presented until the sealed mailer is transferred for shipment, the following minimum procedures shall apply:
  - a. The specimen shall remain under the direct control of the collection site person from delivery to its being sealed in the mailer.
  - b. The mailer shall be immediately mailed, maintained in secure storage, or remain until mailed under the personal control of the collection site person.

### **D. Chain-of-Custody**

1. The chain-of-custody block of the drug testing custody and control form shall be properly executed by authorized collection site personnel upon receipt of specimens.
2. Handling the transportation of urine specimens from one authorized individual or place to another shall always be accomplished through chain-of-custody procedures. Every effort shall be made to minimize the number of persons handling specimens.

### **E. Access to Authorized Personnel Only.**

1. No unauthorized personnel shall be permitted in any part of the designated collection site when urine specimens are collected or stored. Only the collection site person may handle specimens prior to their securement in the mailing container or monitor or observe a specimen collection (under the conditions specified in this section).
2. To promote security of specimens, avoid distraction of the collection site person, and ensure against any confusion in the identification of specimens, the collection site person shall have only one donor under supervision at anytime.
3. For this purpose, a collection procedure is complete when the urine bottle has been sealed and initialed, the drug testing custody and control form has been executed, and the employee has departed the site (or, in the case of an employee who was unable to provide a complete specimen, has entered a waiting area).

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### **F. Privacy.**

1. Procedures for collecting urine specimens shall allow individual privacy unless there is a reason to believe that a particular individual may alter or substitute the specimen to be provided, as further described in this paragraph.
2. For purposes of this procedure, the following circumstances are the exclusive grounds constituting a reason to believe that the individual may alter or substitute the specimen
  - a. The employee has presented a urine specimen that falls outside the normal temperature range (32° – 38°C/90°– 100°F), and
    - (1) the employee declines to provide a measurement of oral body temperature, as provided in paragraph G.14. of this section; or
    - (2) oral body temperature varies by more than 1°C/1.8°F from the temperature of the specimen.
  - b. The last urine specimen provided by the employee (i.e., on a previous occasion) was determined by the laboratory to have a specific gravity of less than 1.003 and a creatinine concentration below .2g/L.
  - c. The collection site person observes conduct clearly and unequivocally indicating an attempt to substitute or adulterate the sample (e.g., substitute urine in plain view, blue dye in specimen presented); or
  - d. The employee has previously been determined to have used a controlled substance without medical authorization and the particular test was being conducted under a DOT regulation providing for follow-up testing upon or after return to service.
3. A higher-level supervisor of the collection site person, or a designated employer representative, shall review and concur in advance with any decision by a collection site person to obtain a specimen under the direct observation of a same gender collection site person based upon the circumstances described in paragraph 2 above.

**G. Integrity and Identity of Specimen.** The collection site person shall take precautions to ensure that a urine specimen is not adulterated or diluted during the collection procedure and that information on the urine bottle and on the urine custody and control form can identify the individual from whom the specimen was collected. The following minimum precautions shall be taken to ensure that unadulterated specimens are obtained and correctly identified:

1. To deter the dilution of specimens at the collection site, toilet bluing agents shall be placed in toilet tanks wherever possible, so that reservoir of water in the toilet bowl always remains blue. Where practicable, there shall be no other source of water (e.g., no shower or sink) in the enclosure where urination occurs. If there is another source of water in the enclosure, it shall be effectively secured or monitored to ensure it is not used as a source for diluting the specimen.
2. When an individual arrives at the collection site, the collection site person shall ensure that the individual is positively identified as the employee selected for testing (e.g., through presentation of photo identification or identification by the employer's representative). If the individual's identity cannot be established, the collection site person shall not proceed with the collection. If the employee requests, the collection site person shall show proper identification to the employee.
3. If the individual fails to arrive at the assigned time, the collection site person shall contact the appropriate authority to obtain guidance on the action to be taken.
4. The collection site person shall ask the individual to remove any unnecessary outer garments such as a coat or jacket that might conceal items or substances that could be used to tamper with or adulterate the individual's urine specimen. The collection site person shall ensure that all personal belongings such as a purse or briefcase remain with the outer garments. The individual may retain his or her wallet. If the employee requests it, the collection site person shall provide the employee a receipt for any personal belongings.

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5. The individual shall be instructed to wash and dry his or her hands prior to urination.
  6. After washing hands, the individual shall remain in the presence of the collection site person and shall not have access to any water fountain, faucet, soap dispenser, cleaning agent, or any other materials which could be used to adulterate the specimen.
  7. The individual may provide their specimen in the privacy of a stall or otherwise partitioned area that allows for individual privacy. The collection site person shall provide the individual with a clean specimen bottle or collection container, if applicable, that is securely wrapped for this purpose.
  8. The collection site person shall note any unusual behavior or appearance on the urine custody and control form.
  9. In the exceptional event that an employer-designated collection site is not accessible and there is an immediate requirement for specimen collection (e.g., circumstances require a post-accident test), a public rest room may be used according to the following procedures: A collection site person of the same gender as the individual shall accompany the individual into the public rest room which shall be made secure during the collection procedure. If possible, a toilet bluing agent shall be placed in the bowl and any accessible toilet tank. The collection site person shall remain in the rest room, but outside the stall, until the specimen is collected. If no bluing agent is available to deter specimen dilution, the collection site person shall instruct the individual not to flush the toilet until the specimen is delivered to the collection site person. After the collection site person has possession of the specimen, the individual will be instructed to flush the toilet and to participate with the collection site person in completing the chain-of-custody procedures.
  10. If the Company is using the single collection method then the following procedures shall be used:
    - a. The collector may choose to direct the employee to urinate either directly into a specimen bottle or into a separate collection container.
    - b. If a separate collection container is used, the collection site person shall pour at least 30 ml of the urine from the collection container into the specimen bottle in the presence of the employee.
  11. Collection Methodology.
    - a. In either collection methodology, upon receiving the specimen from the individual, the collection site person shall determine if it has at least 30 ml of urine for the primary or single specimen bottle and, where the split specimen collection method is used, an additional 15 ml of urine for the split specimen bottle. If the individual is unable to provide such a quantity of urine, the collection site person shall instruct the individual to drink not more than 24 ounces of fluids and, after a period of up to two hours, again attempt to provide a complete sample using a fresh collection container. The original insufficient specimen shall be discarded. If the employee is still unable to provide an adequate specimen, the insufficient specimen shall be discarded, testing discontinued, and the employer is notified. The MRO shall refer the individual for a medical evaluation to develop pertinent information concerning whether the individual's inability to provide a specimen is genuine or constitutes a refusal to test. Upon completion of the examination, the MRO shall report his or her conclusions to the employer in writing.
    - b. In pre-employment testing, if the Company does not wish to hire the individual, the MRO is not required to make such a referral. Upon completion of the examination, the MRO shall report his her conclusion to the Company in writing.
- NOTE: The procedure below may be omitted if the Company does not conduct split sample testing. Since split samples are not mandated by RSPA, a Company implementing these procedures does so based on their Company policy, however, the collection procedures shall be conducted in accordance with the requirements of 49 CFR Part 40.
12. Employers using the split sample method of collection shall follow the procedures set forth below:
    - a. The donor shall urinate into a collection container or specimen bottle capable of holding at least 60 ml.

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- b. If a collection container is used, the collection site person, in the presence of the donor, pours the urine into two specimen bottles. Thirty (30) ml shall be poured into one bottle, to be used as the primary specimen. At least 15 ml shall be poured into the other bottle, to be used as the split specimen.
  - c. If a single specimen bottle is included as a collection container, the collection site person shall pour 30 ml of urine from the specimen bottle into a second specimen bottle (to be used as the primary specimen) and retain the remainder (at least 15 ml) in the collection bottle (to be used as the split specimen).
  - d. Both bottles shall be shipped in a single shipping container, together with copies 1, 2, and the split specimen copy of the chain-of-custody form, to the laboratory.
  - e. If the test result of the primary specimen is positive, the employee may request that the MRO direct that the split specimen be tested in a different DHHS-certified laboratory for presence of the drug(s) for which a positive result was obtained in the test of the primary specimen. The MRO shall honor such a request if it is made within 72 hours of the employee having been notified of a verified positive test result.
  - f. When the MRO informs the laboratory in writing that the employee has requested a test of the split specimen, the laboratory shall forward, to a different DHHS- approved laboratory, the split specimen bottle, with seal intact, a copy of the MRO request, and the split specimen copy of the chain-of-custody form with appropriate chain-of-custody entries.
  - g. The result of the test of the split specimen is transmitted by the second laboratory to the MRO.
  - h. Action required by DOT agency regulations as the result of a positive drug test (e.g., removal from performing a safety-sensitive function) is not stayed pending the result of the test of the split specimen.
  - i. If the result of the test of the split specimen fails to reconfirm the presence of the drug(s) or drug metabolite(s) found in the primary specimen, the MRO shall cancel the test, and report the cancellation and the reasons for it to the DOT, the employer, and the employee.
13. After the specimen has been provided and submitted to the collection site person, the individual shall be allowed to wash his or her hands.
14. Immediately after the specimen is collected, the collection site person shall measure the temperature of the specimen. The temperature measuring device used must accurately reflect the temperature of the specimen and not contaminate the specimen. The time from urination to temperature measure is critical and in no case shall exceed 4 minutes.
15. A specimen temperature outside the range of 32°C – 38°C/90°F – 100°F, constitutes a reason to believe that the individual has altered or substituted the specimen (See Section F.2.a.). In such cases, the individual supplying the specimen may volunteer to have their temperature taken to provide evidence to counter the reason to believe the individual may have altered or substituted the specimen.
16. Immediately after the specimen is collected, the collection site person shall also inspect the specimen to determine its color and look for any signs of contaminants. Any unusual findings shall be noted on the urine custody and control form.
17. All specimens suspected of being adulterated shall be forwarded to the laboratory for testing.
18. Whenever there is reason to believe that a particular individual has altered or substituted the specimen as described in Section F.2.a. and c., a second specimen shall be obtained as soon as possible under the direct observation of a same gender collection site person.
19. Both the individual being tested and the collection site person shall keep the specimen in view at all times prior to its being sealed and labeled. As provided below, the specimen shall be sealed by placement of a tamper-proof seal over the bottle

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cap and down the sides of the bottle and labeled in the presence of the employee. If the specimen is transferred to a second bottle, the collection site person shall request the individual to observe the transfer of the specimen and the placement of the tamper-proof seal over the bottle cap and down the sides of the bottle.

20. The collection site person and the employee shall be present at the same time during procedures outlined in items 21 through 24 of this section.

21. The collection site person shall place securely on the bottle an identification label which contains the date, the individual's specimen number, and any other identifying information provided or required by the employer. If separate from the label, the tamper-proof seal shall also be applied.

22. The individual shall initial the identification label on the specimen bottle for the purpose of certifying that it is the specimen collection from the donor.

23. The collection site person shall enter on the drug testing custody and control form all information identifying the specimen. The collection site person shall sign the drug testing custody and control form certifying that the collection was accomplished according to the applicable Federal requirements.

24. The individual shall be asked to read and sign a statement on the drug testing custody and control form that the specimen collected from him/her is in fact that specimen he/she provided.

25. The collection site person shall complete the chain-of-custody portion of the drug testing custody and control form to indicate receipt of the specimen from the employee and shall certify proper completion of the collection.

26. The urine specimen and chain-of-custody form are now ready for shipment. If the specimen is not immediately prepared for shipment, the collection site person shall ensure that it is appropriately safeguarded during temporary storage.

### **27. Control of Specimen**

a. While any part of the above chain-of-custody procedures is being performed, it is essential that the urine specimen and custody documents be under the control of the involved collection site person.

b. If the involved collection site person leaves the work station momentarily, the collection site person shall take the specimen and drug testing custody and control form with him/her or shall secure them. After the collection site person returns to the work station, the custody process will continue. If the collection site person is leaving for an extended period of time, he/she shall package the specimen for mailing before leaving the site.

c. The collection site person shall not leave the collection site in the interval between presentation of the specimen by the employee and securement of the sample with an identifying label bearing the employee's specimen identification number and seal initialed by the employee. If it becomes necessary for the collection site person to leave the site during this interval, the collection shall be nullified and at the election of the Company a new collection may be begun.

H. Collection Control. To the maximum extent possible, collection site personnel shall keep the individual's specimen bottle within sight both before and after the individual has urinated. After the specimen is collected, it shall be properly sealed and labeled.

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- I. **Transportation to Laboratory.** Collection site personnel shall arrange to ship the collected specimens to the drug testing laboratory. The specimens shall be placed in shipping containers designed to minimize the possibility of damage during shipment (e.g., specimen boxes and/or padded mailers); and those containers shall be securely sealed to eliminate the possibility of undetected tampering. On the tape sealing the container, the collection site person shall sign and enter the date specimens were sealed in the containers for shipment. The collection site person shall ensure that the chain-of-custody documentation is attached to each container sealed for shipment to the drug testing laboratory.
- J. **Failure to Cooperate.** If the employee refuses to cooperate with the collection process, the collection site person shall inform the designated Company representative and shall document the non-cooperation on the drug testing custody and control form.
- K. **Employee Requiring Medical Attention.** If the sample is being collected from an employee in need of medical attention as part of a post-accident test given in an emergency medical facility, necessary medical attention shall not be delayed in order to collect the specimen.
- L. **Use of Chain-of-Custody Forms.** A chain-of-custody form shall be used for maintaining control and accountability of each specimen from the point of collection to final disposition of the specimen. The date and purpose shall be documented on the form each time a specimen is handled or transferred and every individual in the chain shall be identified. Every effort shall be made to minimize the number of persons handling specimens.

## **19.0 FORKLIFT AND MOTORIZED INDUSTRIAL TRUCKS**

### Policy:

All Company employees required to operate a powered industrial truck and/or forklift must be trained to operate the equipment. Motorized industrial trucks and forklifts are a vital and necessary tool that enable the Company to conduct its business efficiently and safely.

Powered industrial trucks are defined as forklifts, platform lift trucks, power sweepers, motorized pallet jacks and all other motorized vehicles used on the Company's premises. The Company will insure that all industrial trucks are inspected daily for safety and mechanical operability. Any industrial truck found to be defective or unsafe will not be used until the defect or unsafe condition is repaired/remedied.

### Employee Certification

Employees must meet the following requirements before they are "certified" to operate a powered industrial truck:

18 Years of age

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Is physically qualified to operate the industrial truck and has no movement limitations concerning their arms, legs, foot, head, waist, back, hands or fingers.

Does not have an established medical history that would interfere with their ability to operate the industrial truck to include:

- Epilepsy
- Mental, nervous, or other functional or psychiatric disorder
- Arthritis, neuromuscular, or vascular disease
- Has the visual acuity and binocular vision of at least 20/40 (with or without corrective lenses), and the field of vision of at least 70 degrees in each eye.
- Does not have an average hearing loss in the better ear greater than 40 decibels at 500 Hz, 1000 Hz, and 2000 Hz with or without a hearing aid. Has passed a pre-employment drug test.
- Does not use drugs that fall into the following categories: opiate, hallucinogenic, depressant, or stimulants.
- Has a valid driver's license
- Complete the "Industrial Truck" written Certification Examination of 70% or better
- Perform a minimum of X hours "On-the-Job Training" in operating an industrial truck.

The Supervisor will provide on-the-job training about how to physically operate the powered industrial truck and additional supervised training as necessary.

The Supervisor will discuss with and instruct the employee so that the employee can gain an understanding of the following key elements:

Basic operation of the industrial truck to include its major components, principals of loading, load capacity, operating "nuances", etc.

Maintenance and inspection of the industrial truck

Starting and operating the truck- parking, turning, load traveling, stacking, backing up, etc.

Refueling procedures

Personal Protective Equipment- seat belt, safety shoes, hard hat, gloves, etc. On-the-Job Coach

Provides on-the-job (hands on training) of X hours about how to physically operate the powered industrial truck. This training will be divided into specific areas listed below:

Pre-Operation and Inspection of Powered Industrial Trucks

Proper start-up and mastery of controls

Maneuvering Skills

Safety procedures

Re-fueling or re-charging

Actually operating the truck in working situations

Once the employee completes the minimum training time, shown consistent safe operating skills, and has demonstrated the ability to handle the equipment, the On-the-Job coach certifies the employee according to the Truck Operator Performance Test.



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I certify that \_\_\_\_\_ is qualified to operate a

Authorizing Signature      Date:

Title:

DAILY CHECKLISTS FOR POWERED INDUSTRIAL TRUCKS

### **DAILY INSPECTION CHECKLIST Electric Forklift Truck:**

KEY OFF Procedures The vehicle inspection Overhead guard Hydraulic cylinders Mast assembly

Lift chains and rollers

Forks

Tires

Examine the battery

Check the hydraulic fluid level

KEY ON Procedures Check the gauges Hour meter

Battery discharge indicator Test the standard equipment Steering

Brakes

Front, tail, and brake lights

Horn

Safety seat (if equipped)

Check the      operation      of      load-handling attachments

### DAILY INSPECTION CHECKLIST Propane Forklift Truck:

KEY OFF Procedures The vehicle inspection Overhead guard Hydraulic cylinders Mast assembly

Lift chains and rollers

Forks

Tires

LPG tank and locator pin

LPG tank hose

Gas gauge

### DAILY INSPECTION CHECKLIST Propane Forklift Truck (continued)

KEY OFF Procedures (continued) Check the engine oil level

Examine the battery

Check the hydraulic fluid level

Check the engine coolant level

### KEY ON Procedures

Test the front, tail, and brake lights

### ENGINE RUNNING Procedures

Check the gauges

Oil pressure indicator lamp Ammeter indicator lamp Hour meter

Water temperature gauge Test the standard equipment Steering

Brakes

Horn

Safety seat (if equipped) Check the operation of the

load-handling attachments

Check the transmission fluid level

**DAILY INSPECTION CHECKLIST: Yard Forklift Truck**

## KEY OFF Procedures

The vehicle inspection

Overhead guard Hydraulic cylinders Mast assembly

Lift chains and rollers

Forks

Tires

LPG tank and locator pin

LPG tank hose

Gas gauge

Check the engine oil level Examine the battery

Inspect the hydraulic fluid level

Check the engine coolant level

## KEY ON Procedures

Test the standard equipment

Front, tail, and brake lights Fuel gauge (if diesel) Windshield wiper

Heater

## ENGINE RUNNING Procedures

Check the gauges

Oil pressure indicator lamp Ammeter indicator lamp Ammeter

Hour Meter

Water Temperature Gauge

Test the standard equipment

Steering Brakes Horn

Safety seat (if equipped)

Check the operation of load-handling attachments

## ENGINE RUNNING Procedures (cont.)

Check the transmission fluid level

**20.0 GENERAL SHOP AND WORK AREA SAFETY****Policy**

Accepted safety and health precautions will be practiced in the use of general shop machines, fixed and portable power tools, and other hand held equipment so that all employees using such equipment will be protected against personal injury. It is also Company policy to institute practices which will minimize the danger of injury to non-operators or user personnel who may be in the area and to minimize the risk to visitors.

**Responsibilities**

Supervisors must recognize those factors in the workplace with accident potential. The supervisor shall provide frequent inspections of job sites, work methods, and materials/equipment used. Any unsafe equipment/material shall be tagged and rendered inoperative or physically removed from its place of operation. The supervisor shall permit only qualified personnel to operate equipment and machinery according to safe work practices.

**a. Supervisors**

1. Ensuring safe working conditions
2. Providing necessary protective equipment
3. Ensuring that required guards and protective equipment are provided, used, and properly maintained.
4. Ensuring that tools and equipment are properly maintained and used.
5. Planning the workload and assigning employees to jobs which they are qualified to perform. Ensuring that the employees understand the work to be done, the hazards that may be encountered, and the proper procedure for doing the work safely.
6. Taking immediate action to correct any violation of safety rules observed or reported to them.
7. Ensuring workers exposed or potentially exposed to hazardous chemicals/materials have access to appropriate Material Safety Data Sheets (SDS).
8. Of a shop or any area where fixed or portable powered or unpowered machines and tools are located, is responsible for being familiar with all procedures for safe use and guarding of machines, personal protective equipment required, shielding against possible injury to other employees or visitors. Enforces safe practices.
9. Trains new employees by providing and requiring manuals to be studied, personally instructing and requesting the assistance of veteran employees already familiar with required safety precautions.
10. Posts signs indicating the use of powered machines by "Authorized Personnel Only" and requires the employees under his/her supervision to assist in the enforcement of this policy. No one is allowed to use fixed or portable powered shop machines or welding equipment without sufficient training to the supervisors' satisfaction.
11. Designates a person to be responsible for general management of a specific shop area and notifies the Safety and Health Manager of the person selected.
12. Designates a qualified person to be responsible for each major fixed, powered machine or tool, posts the name on or near the apparatus, and notifies the Safety and Health Manager accordingly.
13. Coordinates with the Safety and Health Manager to plan and conduct safety meetings with employees as often as needed and warranted. Topics to be discussed at each session will be selected to fit current operations and any unsafe trends. Leads

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the discussion and encourages each employee to participate. May assign one employee on a rotating basis to make a short presentation of the topic to get discussion started.

14. Provides appropriate marking of shop floor areas to identify restricted work areas or "approved operator only" yellow floor lines.

15. Makes periodic inspections of shop areas and other industrial areas. Notes all deficiencies and initiates corrective actions.

16. Ensures that all painting operations or other operations are conducted in well ventilated areas. Asks assistance from the Safety and Health Manager in making this determination and to provide necessary protective equipment and respirators, when appropriate.

### **b. Employees**

Employees shall be thoroughly trained in the use of protective equipment, guards, and safeguards for chemicals and safe operation of equipment, machines, and tools they use or operate. Only employees who have been trained and those undergoing supervised on-the-job training (OJT) shall be allowed to use shop equipment, machines, and tools.

#### Employees responsibilities:

1. Complies with OSHA standards, Company policies and good safe practices when using fixed and portable power tools, equipment and hand held equipment.

2. Cleans up when finished using equipment.

3. Maintains the tools, equipment and work area in an orderly and safe manner.

4. Properly trains new users of equipment for which he/she is responsible.

5. Shares responsibility with the supervisor for identifying and marking shop floor areas.

6. Will not use or permit use of defective equipment or tools in disrepair. Malfunctioning equipment and damaged hand tools will be reported and repair made before using the equipment or tools. If repairs are not possible the equipment or tools will be discarded.

### **c. Safety and Health Manager**

1. Ensures OSHA standards, Company policies and good safe practices are carried out.

2. Assists supervisor and employee in defining hazards and designating safe practices.

3. Conducts routine and periodic inspection of shop areas for compliance to OSHA standards and NIEHS policies.

4. Conducts periodic inspections of employees hand tools and portable power tools

5. Assists the supervisor in planning and conducting safety meetings.

#### A. Shop Procedures:

a. All portable and fixed powered shop machines and tools will be equipped with approved guarding devices. Guards are to be in place while using the machine. Equipment must also be properly electrically grounded before use.

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- b. Proper personal protective equipment will be provided (safety glasses, goggles, shields) and used during grinding or other work that may produce flying particles (e.g. drill press, power saws, etc.). Company approved dust respirators will be used for work that produces airborne dust particles. Eye protection is required during electrical or electronic hardware repair, installation and/or open front operation.
- c. Approved face, eye and body protection will be used during any burning or welding operation. Also, sufficient shielding that provides protection to others in the immediate area will be used.
- d. No flammable materials (paints, solvents, chemicals, etc.) will be stored within the immediate area of any burning or welding operation. Flammable materials must be stored in OSHA and Company approved cabinets.
- e. Any employee using portable fixed tools (drill press, jig or band saw, etc.) must not wear loose clothing. Anyone with long hair must tie back the hair or wear acceptable hair protection while operating equipment. All stock must be clamped down (attempting to hold stock with hands will not be permitted).
- f. Before any employee performs service or maintenance on a machine or equipment where the unexpected energizing, start up or release of stored energy could occur and cause injury, the machine or equipment shall be made safe. This will be accomplished by locking out and tagging out energy isolating devices, and otherwise disabling the machines or equipment. (see Lockout/Tagout Policy).
- g. Clean-up after using powered equipment or hand tools must be done immediately following use of the power tool.
- h. Before any work is started in an area posted with a "Radioactive Materials" label, the supervisor or the Safety and Health Manager will be contacted for instructions so that the work may be safely performed.
- i. Before any work is started in an area designated as "Restricted" (e.g. high hazard, carcinogens, etc.) the area must be inspected by the Safety and Health Manager and permission to proceed given to the supervisor.
- j. Before any work is started in any laboratory area, a request will be made to the Laboratory Supervisor, principal investigator and/or Safety and Health Manager to ensure that there will be no danger from hazardous materials in the immediate area of work.
- k. All burning or welding operations outside the shops area requires a Hot Work permit from the Safety and Health Manager.
- l. Good housekeeping will be maintained in the shop area. Material will be stored in such a manner that there is no danger from sliding, falling or presenting a hazard by striking against or cutting. Scrap stock must be cleaned from floor and work benches following each job or at the end of each day.

### **B. Personal Protective Equipment**

Personal protective equipment (PPE) is not a substitute for engineering controls or feasible work or administrative procedures. While these controls are being implemented, or if it has been determined that control methods are not feasible, personal protective equipment is required whenever there are hazards that can do bodily harm through absorption, inhalation, or physical contact. This equipment includes respiratory and hearing protective devices, special clothing, and protective devices for the eyes, face, head, and extremities. All PPE shall be of a safe design and constructed for the work to be performed and shall be maintained in a sanitary and reliable condition.

#### **1. Eye Protection**

Eye protection is required when there is a possibility of injury from chemicals or flying particles. Examples of operation requiring the use of eye protection include, but are not limited to:

- Chipping, grinding, and impact drilling.

- Breaking concrete, brick, and plaster.
- Welding or helping in welding of any type.
- Cleaning with compressed air.
- Tinning or soldering lugs or large joints.
- Riveting, grinding, or burning metals.
- Handling chemicals, acids, or caustics.

2. Face shields shall be thoroughly washed with soap and water before being worn by another person.

### 3. Hearing Protection

Appropriate hearing protection shall be used where employees are in designated hazardous noise areas with operating noise sources, or using tools or equipment which are labeled as hazardous noise producers. The Office of Health and Safety shall be contacted for noise level surveys and guidance on the type of hearing protection required.

### 4. Hand Protection

a. Rubber protective gloves shall be worn by personnel working in battery shops or where acids, alkalies, organic solvents, and other harmful chemicals are handled.

b. Electrical worker's gloves are designed and shall be used to insulate electrical workers from shock, burns, and other electrical hazards. These gloves shall NOT be the only protection provided and will never be used with voltages higher than the insulation rating of the gloves.

c. Multi-use gloves shall be worn to protect the hands from injuries caused by handling sharp or jagged objects, wood, or similar hazard-producing materials. These gloves are usually made of cloth material with chrome leather palms and fingers or synthetic coating. All-leather gloves are also acceptable.

### 5. Foot Protection

Non-skid shoes shall be worn where floors may be wet or greasy. Where there is reasonable probability of foot or toe injury from impact and compression forces, safety footwear shall be worn.

### 6. Respiratory Protection

There are various airborne hazards, e.g., organic vapors, particulates, fumes, etc., that personnel may encounter and respiratory protection may be required. The Safety and Health Manager shall be consulted for guidance on the type of protection required.

### 7. Head Protection

Hard hats shall be worn by all personnel working below other workers and in areas where sharp projections or other head hazards exist.

### 8. Body Protection

Natural or synthetic rubber or acid-resisting rubberized cloth aprons shall be worn by personnel handling irritating or corrosive substances. Aprons shall normally be worn with acid sleeves and gloves for greater body protection against skin injuries.

### 9. Insulated Matting

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Insulating matting shall be used by workers for additional resistance to shock where potential shock hazards exist, such as:

- Areas where floor resistance is lowered due to dampness.
- Areas where high voltages (above 600 volts) may be encountered.
- Areas with electrical repair or test benches.

### 10. Other

a. Shop supervisors shall ensure that shop personnel use the protective clothing and equipment that will protect them from hazards of the work they perform. It is the responsibility of workers to keep their PPE in a clean, sanitary state of repair and use the equipment when required.

b. Workers shall keep their hands and face clean, change clothes when they are contaminated with solvents, lubricants, or fuels, and keep their hands and soiled objects out of their mouth. No food or drink shall be brought into or consumed in areas exposed to toxic materials, chemicals, or shop contaminants. Workers shall wash their hands before eating or smoking after exposure to any contaminant.

c. Workers shall not wear rings, earrings, bracelets, wristwatches, or necklaces in the vicinity of operating machinery and power tools. Additionally, long full beards, unrestrained long hair, and loose clothing can become caught in tools or machinery and cause serious personal injury. Highly combustible garments or coveralls made of material such as nylon shall not be worn in or around high temperature equipment or operations such as boiler operations, welding, and any other work with open flame devices.

### C. Shop Layout

Proper layout, spacing, and arrangement of equipment, machinery, passageways, and aisles are essential to orderly operations and to avoid congestion.

1. Equipment and machinery shall be arranged to permit an even flow of materials. Sufficient space should be provided to handle the material with the least possible interference from or to workers or other work being performed. Machines should be placed so it is not necessary for an operator to stand in a passageway or aisle. Additionally, machine positioning should allow for easy maintenance, cleaning, and removal of scrap. Clear zones shall be established and should be of sufficient dimensions to accommodate typical work. Marking of machine clear zones may be yellow or yellow and black hash-marked lines, 2 to 3 inches wide. Machines designed for fixed locations shall be securely anchored. If pieces of stock to be worked exceeds workplace/clear zone floor markings, rope/stanchions may be used to temporarily extend the workplace. Machines with shock mounting pads shall be securely anchored and installed according to manufacturer's instructions.

2. Passageways/aisles shall be provided and marked to permit the free movement of employees bringing and removing material from the shop. These passageways are independent of clear zones and storage spaces. They shall be clearly recognizable.

3. Where powered materials handling equipment (forklift) is used, facility layout shall provide enough clearance in aisles, on loading docks, and through doorways to permit safe turns. Aisles shall be at least 3 feet wider than the widest vehicle used or most common material being transported.

### D. Illumination

Adequate illumination shall be provided to ensure safe working conditions.

1. Portable lamps shall have UL approved plugs, handles, sockets, guards, and cords for normal working conditions.

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2. For work in boilers, condensers, tanks, turbines, or other grounded locations that are wet or may cause excessive perspiration, a low voltage lighting system should be used, either from a battery system or low-voltage lighting unit. In situations where these lighting systems are not available, a vapor-proof 110 volt lighting system shall be used.

3. Flashlights for use near energized electrical equipment and circuitry shall have insulated cases.

4. At least 50 foot-candles of illumination shall be provided at all work stations. However, fine work may require 100 foot-candles or more. This can be obtained with a combination of general lighting plus supplemental lighting.

### **E. Exits and Exit Markings**

1. Every exit shall have "EXIT" in plain legible letters not less than 6 inches high with the strokes of the letters not less than three-quarters of an inch wide.

2. Doors, passageways, or stairways which are neither exits nor ways to an exit (but may be mistaken for an exit) shall be clearly marked "NOT AN EXIT" or by a sign indicating their actual use, for example: "STORAGE ROOM" or "BASEMENT."

3. When the direction to the nearest exit may not be apparent to an occupant, an exit sign with an arrow indicating direction shall be used.

4. Exit access shall be arranged so it is unnecessary to travel toward any area of high hazard potential in order to reach the nearest exit (unless the path of travel is effectively shielded by suitable partitions or other physical barriers).

5. Exit signs shall be clearly visible from all directions of egress and shall not be obstructed at any time. If occupancy is permitted at night, or if normal lighting levels are reduced at times during working hours, exit signs shall be suitably illuminated by a reliable light source.

6. A door from a room to an exit or to a way of exit access will be the side-hinged swinging type. It will swing out in the direction of travel if 50 or more persons occupy the room or the exit is from an area of high hazard potential.

7. Areas around exit doors and passageways shall be free of obstructions. The exit route shall lead to a public way. No lock fastening device shall be used to prevent escape from inside the building.

8. Where occupants may be endangered by the blocking of any single exit due to fire or smoke, there shall be at least two means of exit remote from each other.

9. Exits, exterior steps, and ramps shall be adequately lighted to prevent mishaps. Separate lighting will not be required if street or other permanent lighting gives at least one foot-candle of illumination on the exit, steps, or ramp.

### **F. Housekeeping**

Good housekeeping shall be maintained in all shops, yards, buildings, and mobile equipment.

Supervisors are responsible for good housekeeping in or around the work they are supervising. As a minimum, the following requirements shall be adhered to:

1. Material shall not be placed where anyone might stumble over it, where it might fall on someone, or on or against any support unless the support can withstand the additional weight.

2. Aisles and passageways shall be kept clear of tripping hazards.

3. Nails shall be removed from loose lumber or the points turned down.

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4. Ice shall be removed from all walkways and work areas where it may create a hazard or interfere with work to be done. If ice cannot be removed readily, sand or other approved materials shall be applied.
5. Trash and other waste materials shall be kept in approved receptacles. Trash shall not be allowed to accumulate and shall be removed and disposed of as soon as practicable, at least once per shift (or more often if needed).
6. Disconnect switches, distribution panels, or alarm supply boxes shall not be blocked by any obstruction which may prevent ready access.
7. Machinery and equipment shall be kept clean of excess grease and oil and (operating conditions permitting) free of excessive dust. Pressure gauges and visual displays shall be kept clean, visible, and serviceable at all times. Drip pans and wheeled or stationary containers shall be cleaned and emptied at the end of each shift.

### G. Fire Prevention

All shop services personnel shall receive fire prevention training as part of their general training.

1. Supervisors in charge of operations where fuels, solvents, or other flammable liquids are used shall be constantly alert for hazards and unsafe acts. Fuels such as gasoline shall never be used to clean floors or clothing, and open solvent or gasoline containers shall not be kept near electrical equipment. The use of low flashpoint petroleum solvents shall be avoided whenever possible. Open flames, open element heaters, equipment not properly grounded, and nonexplosion-proof electrical equipment used in the presence of flammable or combustible liquids shall be avoided.

2. Fire extinguishers of at least 20 BC or greater rating shall be installed in shop areas. The number of extinguishers depends upon the size and layout of the facility. Fire extinguishers shall meet the following OSHA requirements:

a. Be kept fully charged and in their designated area. b. Be located along normal paths of travel.

c. Not be obstructed or obscured from view.

d. Be visually inspected at least monthly to ensure that they:

1. Are in their designated places.

2. Have not been tampered with or actuated.

3. Do not have corrosion or other impairments.

4. Are accessible and not obstructed.

2. Fire extinguishers shall meet the following OSHA requirements: (continued)

d. Be visually inspected at least monthly to ensure that they:

5. Be examined at least yearly and/or recharged or repaired to ensure operability and safety.

6. Be hydrostatically tested.

7. Be placed so the maximum travel distance, unless there are extremely hazardous conditions, does not exceed 75 feet for Class A or 50 feet for Class B locations.

3. Supervisors shall ensure that employees remove construction debris and rubbish from the job site upon completion of the job, or daily if extended beyond one day. Hazardous materials shall not be left at job sites unless properly stored. Work being performed on job sites shall not endanger building occupants (e.g., exits blocked, fire alarm devices disconnected, etc.).

### H. Material Storage

All unnecessary accumulation of materials and supplies in the shop area shall be avoided. The presence of unnecessary material in the shop could cause such incidents as tripping, falling, or slipping. This could be especially hazardous around equipment that is in operation. The only material in the shop area shall be that actually in work. The only place that materials should accumulate in quantity are in storerooms and material holding areas.

1.The storage of materials shall not, of itself, create a hazard. Materials stored in tiers shall be stacked, strapped, blocked or interlocked, and limited in height so they are stable and secure against sliding or collapse. Storage racks shall have sufficient capacity to bear the loads imposed on them.

2.Stored materials shall not obstruct fire extinguishers, alarm boxes, sprinkler system controls, electrical switch boxes, machine operations, emergency lighting, first aid or emergency equipment, or exits.

3.Heavy materials and equipment should be stored low and close to the ground or floor to reduce the possibility of injury during handling.

4.All passageways and storerooms shall be maintained clean, unobstructed, dry, and in sanitary condition. Spills will be promptly removed.

5.Where mechanical handling equipment, such as lift trucks are used, safety clearance shall be provided for aisles at loading docks, through doorways, and wherever turns or passages must be made. No obstructions that could create a hazard are permitted in aisles.

### I. Use of Tools

#### I Handtools

Incidents at the job site involving hand tools are usually the result of misuse. Hand tools are precision tools capable of performing many jobs when used properly. Prevention of incidents involving hand tools on the job site becomes a matter of good instruction, adequate training, and proper use.

Hand tool safety requires that the tools be of good quality and adequate for the job. All tools shall be kept in good repair and maintained by qualified personnel.

Racks, shelves, or tool boxes shall be provided for storing tools which are not in use.

When personnel use hand tools while they are working on ladders, scaffolds, platforms, or work stands, they shall use carrying bags for tools which are not in use. Workers shall not drop tools.

2. Supervisors shall frequently inspect all hand tools used in the operation under their supervision. Defective tools shall be immediately removed from service. Some common tool defects are:

#### a. Handles

When handles of hammers, axes, picks, or sledges become cracked, split, broken, or splintered, they shall be immediately replaced. Tool handles shall be well-fitted and securely fastened by wedges or other acceptable means.

Wedges, always used in pairs, shall be driven into the handle when repairing a sledgehammer or maul, to prevent the head from accidentally flying off if the handle shrinks.

#### b. Tangs

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Files, wood chisels, and other tools with tangs shall be fitted and used with suitable handles covering the end of the tang. Ends of the handles shall not be used for pounding or tapping.

### **c. Mushroom Heads**

Cold chisels, punches, hammers, drift pins, and other similar tools have a tendency to mushroom from repeated poundings. They shall be dressed down as soon as they begin to crack and curl.

1. When dressing tools, a slight bevel of about three-sixteenths of an inch shall be ground around the head. This will help prevent the heads from mushrooming.

2. When tool heads mushroom, the material is highly crystallized and, with each blow of the hammer, fragments are likely to break off.

### **3. Portable Power Tools**

Portable power tools increase mobility and convenience but are frequently more hazardous to use than their stationary counterparts. Personnel who are required to use portable power tools in their work shall be thoroughly trained in safe operating practices. Safe operating procedure shall be set up for each type of tool consistent with the manufacturer's instructions.

### **J. Use of Compressed Air Sources**

1. Compressed air has the appearance of a relatively harmless gas. However, to avoid accidents, compressed air must be used correctly. The improper or inadvertent connection of items not designed for shop air pressure, i.e., equipment, storage vessels, or containers, to a shop air supply may cause serious personal injury and more than likely will damage the item being connected.

2. The maximum air pressure approved for general use in the shops and laboratories is 30 psi (pounds per square inch). This pressure is sufficient for most shop and laboratory operations and is not significantly hazardous. Use discretion and good judgement when using compressed air, even at this low pressure.

3. The following rules and practices are suggested to avoid personal injury, equipment damage, and potential environmental impact:

All personnel assigned to shops with air compressors shall be familiar with compressor operating and maintenance instructions.

Compressed air is not to be used to blow dirt, chips, or dust from clothing.

Air compressors shall be maintained strictly in accordance with the manufacturer's instructions. Do not use compressed air to transfer materials from containers when there is a possibility of exceeding the safe maximum allowable working pressure of the container.

The maximum working pressure of compressed air lines shall be identified in psi. Pipeline outlets shall be tagged or marked showing maximum working pressure immediately adjacent to the outlet.

Do not use compressed air to transfer materials from standard 55-gallon drums. Use a siphon with a bulk aspirator on a pump.

### **WARNING**

It is dangerous to pressurize any container not designed for that purpose.

Never use compressed air where particles can be accelerated by the air stream.

Do not use compressed air to clean machinery or parts unless absolutely necessary. Where possible, use a brush. If necessary, use a minimum pressure and provide barriers or clean the area of personnel. Wear goggles to protect your eyes.

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Never apply compressed air to any part of a person's body.

Do not use a compressed air line that does not have a pressure regulator for reducing the line pressure.

Keep the hose length between tool housing and the air source as short as possible.

Where possible, attach a short length of light chain between the hose and the housing on air-operated tools. This keeps the hose from whipping should the hose-tool coupling separate. Inspect air supply and tool hoses before using. Discard and label unfit hoses. Repair hoses where applicable.

Turn valve off and vent pressure from a line before connecting or disconnecting it. Never work on a pressurized line.

Do not connect air supply respirators or supplied-air suits to the compressed air supply system of any building. Such compressed air is unsafe to breathe.

Do not attach pneumatic tools, process, or control instruments to breathing air lines. The potential contamination to personnel and systems is hazardous.

### **K. Rooftop Work**

If the rooftop to be worked on is not provided with an adequate guardrail, the following procedures shall apply

- No employee shall come within 10 feet of the roof's edge without wearing a lifebelt or harness securely attached to a securely anchored rope or line, with the entire system being capable of supporting a minimum dead weight of 5,400 pounds.
- No employee shall work on the rooftop if the windspeed exceeds 20 miles per hour.

### **L. Shoring and Trenching**

The walls and faces of excavations and trenches over 5 feet, where workers may be exposed to danger, shall be guarded by a shoring system, sloping of the ground, or some other equivalent means. Trenches less than 5 feet deep with hazardous soil conditions also shall be effectively protected.

The following guidelines are provided:

1. Appropriate trench boxes and/or shields may be used in lieu of shoring or sloping.
2. Tools, equipment, an excavated material shall be kept 2 feet or more from the lip of the trench. Where employees are required to be in or work in trenches 4 feet deep or more, an adequate means of exit such as ladders or steps shall be provided within 25 feet of travel and used.
3. Daily inspections shall be made of trenches and excavations by the supervisor in charge to ensure adequate slopes, shoring and bracing, and that there is no evidence of possible slides or cave-ins. More frequent inspections may be necessary as work progresses or after inclement weather conditions, such as rain, or where loose compacted or unstable materials are present.
4. Workers shall take extra care when hand excavating in close proximity to utilities to preclude interruption of services and personnel injury and/or equipment damage which can result from breaking electrical, gas, and steam lines.

### **M. Barricades**

Whenever a common area is disturbed by maintenance, repair, or construction operations and presents a hazard to personnel working in or near, or traveling through the area, care shall be taken to warn these personnel and other engineering services personnel of the potential hazard. Appropriate barriers shall be erected around excavations, open manholes, open electrical panels, etc., whenever they are to be left unattended.

## **21.0 PAINTING OPERATIONS**

### Policy

Painting and paint removal present hazards requiring effective controls. Hazards include exposure to toxic materials and flammable or explosive mists, particulates, and vapors.

Inhalation of mists and vapors from nearly all paints, solvents, thinners, cleaning chemicals, strippers, and epoxies can be injurious depending upon the agent's toxic characteristics and the amount and method of exposure. Further, many can physically injure the skin and eyes, or be absorbed through the skin.

Potential physical and health hazards can be effectively controlled by appropriate work procedures, controls, facility design, protective clothing, and equipment.

### Procedures

#### Pressure Equipment

Pressure equipment used in painting operations is hazardous because of the compressed air component; therefore, the Supervisor shall assure that spray painting equipment is in serviceable condition.

On all air-type spraying equipment a pressure regulator valve shall be installed in the air line between the compressor and painting equipment. A pressure relief valve and a pressure gauge shall be installed between the pressure regulator and pressurized paint containers and/or spray guns. Pressure relief valves shall be set to open at pressures not more than 10 pounds above the required working pressure.

#### Other Equipment

Painter's ladders, scaffolds, and other equipment shall be inspected prior to use to be certain they are in safe condition.

#### Paint Mixing

Paint mixing shall be done in designated, adequately ventilated rooms constructed of fire-resistant materials. All sources of ignition shall be prohibited in mixing areas. All electrical fixtures or equipment in or within 20 feet of designated paint preparation areas shall meet the requirements of the National Electrical Code (NFPA #70) for Class I Division 2 locations.

#### Housekeeping

Good housekeeping is essential to safe operations in paint shops. Paint rooms, booths, etc., shall be kept clean with equipment stored in a proper and orderly manner. All solvent or paint soiled rags shall be placed in approved self-closing metal containers plainly marked to indicate the contents. At the end of each day, these containers shall be emptied or removed to an approved location for pickup and disposal.

#### Health

##### Personnel Exposures-

There is a wide application of organic solvents in painting. All organic solvents have some effect on the central nervous system and the skin. The principal modes of personnel exposure are inhalation of vapors and skin contact and absorption. Personnel engaged in painting operations should review Material Safety Data Sheets (SDS) in order to acquaint themselves with the properties and hazards of the solvents that are used. Skin contact with solvents may cause dermatitis, ranging in severity from a simple irritation to actual damage to the skin.

## **SAFETY AND HEALTH PROGRAM**

### **Protective Equipment-**

Personnel engaged in painting and paint removal shall wear protective clothing, respiratory devices if required, and appropriate face, eye, and hand protection. Eye or face protection is required during scraping or paint preparation (abrasive techniques). Clothing shall be changed, as needed, to minimize body contamination.

### **Respiratory Protection-**

The Safety and Health Manager should be consulted for specific advice on respiratory protection required for specific painting activities.

### **.Personal Hygiene-**

The hands and face shall be kept clean, clothes shall be changed when contaminated and hands and soiled objects shall be kept out of the mouth.

No food or drink shall be brought into, or consumed, in paint shops. Personnel shall wash their hands prior to smoking or consuming food. Air and Water Pollution

### **Pollution Prevention-**

Painting and paint removal operations can cause air and water pollution problems which can impact the local community. Liquid, solid, and gaseous waste products from painting and paint removal operations shall be disposed of in accordance with federal and state air, water, and solid waste pollution control laws and as specified by the Safety and Health Manager.

### **Spills-**

All spills of flammable or combustible liquids shall be cleaned up promptly. With major spills, remove ignition sources, evacuate, and ventilate the area, and provide appropriate protective equipment to cleanup personnel. These liquids shall not be allowed to enter a confined space, such as a sewer, because of the possibility of an explosion.

## **22.0 FIRE PREVENTION AND PROTECTION**

### **Fire Prevention**

Painting operations of particular concern are those having a fire potential; i.e., paint removal, solvent wipe and paint application by means of spray apparatus. Certain paints, lacquers, varnishes, shellacs, solvents, and thinners are very flammable. These, for the purpose of control, are classified as being flammable. Solvent materials selected to do the residual clean up, after the initial removal, shall have a flash point of 140 degrees F or above.

### **Spray Painting**

Spray painting presents varying degrees of fire hazards, depending on the materials used. Material having a flash point below 140 degrees will be handled very carefully, and precautions are in order even for those having a flash point higher than this.

### **Sprinklers**

Fire suppression sprinklers installed in spray finishing areas shall conform to NFPA 13, provisions for extra hazardous occupancy. Dry chemical, carbon dioxide, or halogenated extinguisher systems may be installed where automatic sprinkler protection is not available.

### **Extinguishers**

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Portable fire extinguishers shall be installed near all paint spraying areas. The Safety and Health Manager shall determine the type of extinguisher that is appropriate.

### Ventilation Systems

Ventilation and exhaust systems shall be in accordance with the standard for Blower and Exhaust Systems for Vapor Removal, NFPA 91. Mechanical ventilation shall be in operation while spraying operations are being conducted and for a sufficient time thereafter to assure vapors are completely exhausted. Adequate conditioned make-up air must be provided.

#### Fan Unit

The fan-rotating element and its casing shall be non-sparking. Ample clearances shall be provided to prevent friction-caused fire hazards. Fan blades shall be mounted on a shaft rigid enough to maintain alignment when the fan is operating under full load.

#### Exhaust Ducts

Exhaust ducts shall be protected against mechanical damage, properly supported, and will normally have a separation of at least 18 inches from combustible materials. Ducts shall be periodically inspected for accumulation of paint deposits and shall be cleaned as needed.

#### Exhaust

Air exhaust from spray operations shall be directed so that it will not contaminate make-up air being introduced into the spraying area or other ventilation intakes. Unless the spray booth exhaust duct terminal is from a water-wash spray booth, the terminal discharge point shall be at least 6 feet from any combustible exterior wall or roof.

#### Motors

Electric motors driving exhaust fans shall not be placed inside booths or ducts. Drive belts shall not enter the duct or booth unless the belt and pulley within the duct or booth are enclosed or guarded.

### Storage and Handling

#### Storage

The quantity of paints, lacquers, thinners, solvents and other flammable and combustible liquids kept near spraying operations shall be the minimum required for operations but shall not exceed 1 day's supply.

Bulk storage of these liquids shall be in a separate building detached from other buildings or in rooms specifically designed and constructed to meet flammable storage room requirements.

No storage of open containers of solvents is permitted. Open containers may only be used for cleaning of painting materials after which the solvent shall be transferred back to a closed container for retention or disposal. Supplies of flammable and combustible liquids shall be stored in approved fire-resistant safety containers equipped with flash screens and self-closing lids. Operations involving water base latex paints are exempt from the above requirements.

#### Containers

Original closed containers, approved portable tanks, and approved safety cans shall be used for bringing flammable or combustible liquids into spray finishing rooms. Open or glass containers shall not be used.

### Liquid Transfer

The withdrawal of liquids from containers and the filling of containers, including portable mixing tanks, shall be done only in a mixing room or in a spraying area when the ventilating system is in operation. Precautions shall be taken to protect against liquid spillage.

### Grounding

Whenever flammable or combustible liquids are transferred from one container to another, both containers shall be effectively bonded and grounded. This practice prevents electrical discharge from the accumulation of static charge because of the transfer process.

### Electrical

#### Electrical Wiring

Electrical wiring and equipment shall conform to the provisions of the National Electrical Code (NFPA 70). Electrical wiring located in spray areas must be rigid metal conduit, Type MI cable, or in metal boxes or fitting containing no taps, splices or terminal connections. There are alternative electrical wiring in options when the location is adjacent to (rather than inside) a spray area (NFPA 33).

#### Electrical Equipment

Electrical equipment outside of, but within 20 feet horizontally and 10 feet vertically, of any spraying area and not separated from it by partitions extending at least to the boundary of the Division 2 location shall be of non-spark producing design. This equipment shall also conform to the provisions of NFPA 70, for Class I or Class I, Division 2 locations as applicable. If spraying operations are confined to an enclosed spray booth or room, the space adjacent to the booth or room shall be considered non-hazardous except for the space within three feet in all directions from any opening in the booth or room.

### Grounding

All metal parts of spray booths and exhaust ducts conveying flammable or combustible liquids or aerated combustible solids shall be electrically grounded.

### Accident & Incident Auditing, Investigation, and Reporting

### **23.0 COMPANY INCIDENT REPORTING SYSTEM**

#### Introduction

The Company Incident Reporting System is designed to:

1. Track and analyze employee injuries and illnesses, property and vehicle damage, as well as serious events or near misses which might have resulted in personal injury, illness, or property and vehicle damage
2. Initiate the worker's compensation process, if necessary
3. Meet regulatory reporting requirements

All incidents (accidents resulting in injury or causing illness to Company employees) and events

(near-miss accidents) shall be reported in order to:

- Establish a written record of factors which cause injuries and illnesses and occurrences (near-misses) which might have resulted in injury or illness but did not, as well as property and vehicle damage.
- Maintain a capability to promptly investigate incidents and events in order to initiate and support corrective and/or preventive action.
- Provide statistical information for use in analyzing all phases of incidents and events involving Company personnel.
- Provide the means for complying with the reporting requirements for occupational injuries and illnesses outlined in Section 19 of the Occupational Safety and Health Act of 1970.

#### Applicability and Scope

The Incident Reporting System requirements apply to all incidences involving Company personnel arising out of or in the course of employment which results in (or might have resulted in) personal injury, illness, and/or property and vehicle damage.

#### Incidents (Occupational Injuries and Illnesses)

Injuries and illnesses that require reporting include those injuries and illnesses occurring on the job which result in any of the following: lost work time, restrictions in performing job duties, requirement for first aid or outside medical attention, permanent physical bodily damages, or death. Examples of "reportable injuries and illnesses include, but are not limited to, heat exhaustion from working in hot environments, strained back muscles from moving equipment, acid burns on fingers, etc.

Other incidents requiring reporting include those incidents occurring on the job which result in any of the following: injury or illness, damage to a Government vehicle, fire/explosion, property damage of more than \$100, or chemical releases requiring evacuation of at least that immediate spill area. Examples of reportable incidents include denting the fender of a Government vehicle, spilling 1 liter of sulfuric acid on the floor, and release of pressurized air through a leaking valve into a room.

Examples of "non-reportable" injuries and illnesses include small paper cuts, common colds, and small bruises not resulting in work restrictions or requiring first aid or medical attention. Examples of other non-reportable incidents include, but are not limited to, dropping and breaking an empty glass sample bottle, knocking over 10 milliliters of sulfuric acid in a graduated cylinder under a fume hood and knocking a chair or table over.

#### Events (Near Misses)

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Other incidents which, strictly by chance, do not result in actual or observable injury, illness, death, or property damage are required to be reported. The information obtained from such reporting can be extremely useful in identifying and mitigating problems before they result in actual personal or property damage.

Examples of near miss incidences required to be reported include the falling of a compressed gas cylinder, overexposures to chemical, biological, or physical agents (not resulting in an immediately observable manifestation of illness or injury), and slipping and falling on a wet surface without injury.

### Responsibilities

All Company personnel have a responsibility to report all occupational injuries and illnesses, and other incidents or events under the Company Incident Reporting System.

### Office of Health and Safety

Safety and Health Manager has the overall responsibility for implementing the Incident Reporting System, including review of incident/event reports, recommendation of corrective and/or preventive actions, and maintaining record keeping required by federal regulations.

### Supervision

Supervisors are primarily responsible for ensuring that the Company Incident Report and appropriate workers compensation forms are completed and distributed as indicated on the forms in a timely manner.

### Company Personnel

All Company employees must be familiar with the procedures for reporting occupational injuries and illnesses and hazardous conditions or situations in which employees may be potentially exposed. All Company personnel have the responsibility to initiate the incident reporting sequence by informing their supervisors immediately of an actual or potential injury or illness as soon as possible after an incident has occurred.

### Incident Reporting Procedures and Practices

This section describes the specific procedures that shall be followed by Company personnel in order to effectively report occupational injuries and illnesses and other incidents or events.

### Incidents (Injuries and Illnesses)

Serious injury or illness posing a life-threatening situation shall be reported immediately to the local emergency response medical services (Call 911).

Injuries and illnesses shall be reported by the injured employee to his or her supervisor in person or by phone as soon after any life-threatening situation has been addressed. If the injured employee is unable to report immediately, then the incident should be reported as soon as possible.

Upon notification of an occupational injury or illness, the supervisor should notify the Safety and Health Manager, who will then prepare the necessary record keeping forms.

### Events

Incidents not involving injury or illness, but resulting in property damage, must also be reported to the Safety and Health Manager within 48 hours of the incident.

## **SAFETY AND HEALTH PROGRAM**

In cases of a fire or explosion that cannot be controlled by one person, vehicular accident resulting in injury or more than \$500 worth of damage, or a chemical release requiring a building evacuation, the involved party must immediately report the incident to the emergency response services in the area (911 – police, fire, etc.)

All near miss incidences are also required to be reported on the Incident Report Form within 48 hours of occurrence. In place of indicating the result of the incident (i.e., actual personal or property damage), the reporting person shall indicate the avoided injury or damage.

Events, hazardous working conditions or situations, and incidents involving contractor personnel must be reported to Safety and Health Manager immediately.

### Recordkeeping

OSHA requires that employers maintain a record of certain occupational injuries that occur at each business establishment on the OSHA Form Log 300 and 300A: Log of Work-Related Injuries and Illnesses and Summary of Work-Related Injuries and Illnesses. At the end of each year, OSHA requires the summary section of the OSHA Form Log 300A to be posted at each business establishment no later than February 1 and remain in place until April 30. The Safety and Health Manager will maintain the required OSHA 300 Log and Summary OSHA 300A.

Each individual field station must also maintain their own OSHA 300 Log and OSHA 300A outlined above must be followed.

### Incident Investigation

The Safety and Health Manager will review each reported incident and event to:

1. Determine if further investigation is required and then perform the investigation
2. Make recommendations for corrective and/or preventative actions necessary to reduce or eliminate hazardous conditions and monitor the status of the abatement actions.

### Company Health and Safety Manual

Each new employee shall be given copies of sections of the Company Health and Safety Manual (that pertain to employee safety) upon starting employment with the Company. These copies of the manual describes health and safety programs at Company and is available to the employee as a reference dealing with health and safety issues.

### Training

To ensure that Company personnel are cognizant of the Company Incident Reporting System requirements and are aware of their own and other's responsibilities, a series of informational and instructional training opportunities exist.

Personnel new to the Company are required to attend New Employee Orientation training which will inform them on Company organizational structure, resources, and procedures. This orientation will ensure that new personnel are aware of the existence of this Manual and of its contents, and who the responsible persons in their organizations are.

### Review and Audit

The effectiveness of a program can only be accomplished if the program is implemented. Therefore, periodic reviews and audits shall be conducted to confirm that all employees have obtained a copy of this Manual and are familiar with the incident reporting requirements. Furthermore, review and auditing many include an inspection of report submissions and filing systems.

### Implementation

Implementation of the Company Incident Reporting System will be effected through a combination of mechanisms. The general theme of these means is focused on program education, understanding, and awareness which include:

- Distribution of the Company Health and Safety Manual
- Training for supervisors
- Program review and audit

### 24.0 COVID-19 DISINFECTING PROTOCOL

Employees should sanitize and disinfect all areas of their workplace with special attention to:

- Tools
- Workstations and equipment
- Lockers
- Common surface areas
- Computer screens and keyboards

#### General Disinfection Measures:

This checklist should be implemented in facilities to reduce the risk of spread of infection. The cleaning steps outlined below should be taken routinely, based on frequency mentioned to disinfect workplace surfaces, chairs, tables, etc. and protect employees. Along with these workplace disinfection activities, proper personal sanitary practices including washing hands after bathroom use are also necessary.

#### Disinfection frequency in workshops & offices

| AREA/PLACE                            | DISINFECTION CONTENT                                                    | FREQUENCY                                            |
|---------------------------------------|-------------------------------------------------------------------------|------------------------------------------------------|
| Work Cell Common Surface              | Including control buttons, tools and other common surfaces              | End of each shift at a minimum and/or after each use |
| Offices, desk and conference rooms    | Tables, chairs, mouse, keyboards and phones                             | End of each shift at a minimum and/or after each use |
| General objects often used or touched | Doors and windows, handles, water coolers, faucets, sinks and bathrooms | At least four (4) times a day or after each use      |
| Forklifts                             | Wipe areas of common interaction                                        | After each use                                       |
| Transport Vehicles                    | Common surfaces (i.e. handles, seat belts and wheel)                    | After each use                                       |

#### Inbound Parts/Materials/Packages:

The World Health Organization advises it is safe to receive packages from areas where COVID-19 has been reported, advising that,

***“The likelihood of an infected person contaminating commercial goods is low, and the risk of catching the virus that causes COVID-19 from a package that has been moved, traveled, and exposed to different conditions and temperature is also low.”***

The virus does not survive on surfaces for long and the length of shipment time and other environmental factors should inactivate the virus. Please continue to use caution however.

## FORM 2.0.1 Employee Safety Training Checklist

|                      |  |                  |  |
|----------------------|--|------------------|--|
| <b>Employee Name</b> |  | <b>Hire Date</b> |  |
| <b>Position</b>      |  | <b>Trainer</b>   |  |

I acknowledge that I have been trained in the SAFETY AND HEALTH areas checked below, and agree to follow all EAFab Corporation Safety and Health Rules, Policies and Procedures.

|                          |                                                                                                                                                               |
|--------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <input type="checkbox"/> | Safety and Health Program                                                                                                                                     |
| <input type="checkbox"/> | My right to ask questions, or report any safety hazards, either directly or anonymously without any fear of reprisal.                                         |
| <input type="checkbox"/> | Disciplinary procedures that may be used to ensure compliance with safe work practices.                                                                       |
| <input type="checkbox"/> | Reporting safety concerns.                                                                                                                                    |
| <input type="checkbox"/> | Accessing the department safety committee.                                                                                                                    |
| <input type="checkbox"/> | Incident Reporting and Reporting Occupational Injuries and Illnesses.                                                                                         |
| <input type="checkbox"/> | Hazard Communication                                                                                                                                          |
| <input type="checkbox"/> | The potential occupational hazards in the work area associated with my job assignment.                                                                        |
| <input type="checkbox"/> | The safe work practices and personal protective equipment required for my job title.                                                                          |
| <input type="checkbox"/> | The hazards of any chemicals to which I may be exposed, and my right to the information contained on Material Safety Data Sheets (SDS's) for those Chemicals. |
| <input type="checkbox"/> | Hazardous Material Spill Response                                                                                                                             |
| <input type="checkbox"/> | Blood borne Pathogen Response                                                                                                                                 |
| <input type="checkbox"/> | Personal Protective Equipment                                                                                                                                 |
| <input type="checkbox"/> | Employee Safety Manual                                                                                                                                        |
| <input type="checkbox"/> | Machinery Tag Out Program                                                                                                                                     |
| <input type="checkbox"/> | Emergency Procedures                                                                                                                                          |
| <input type="checkbox"/> | Other: _____                                                                                                                                                  |

I understand the above checked items, I have been trained on each of them and agree to comply with all the safe work practices in my work area as per the corresponding policies.

|      |                    |
|------|--------------------|
| Date | Employee Signature |
|------|--------------------|

**FORM 5.0.1 Material Safety Data Sheet Request Form**

| Requestor's Name | Date of Request | Phone |
|------------------|-----------------|-------|
|                  |                 |       |

|                     |
|---------------------|
| Full Label Name     |
| Manufacturer        |
| Product Description |
| Vendor (if known)   |
| Telephone Number    |
| Container Size      |
| Other               |

**Form 5.0.2 Safety Suggestion Form**

|                                             |      |
|---------------------------------------------|------|
| NAME (OPTIONAL)                             | DATE |
| DESCRIPTION OF UNSAFE CONDITION OR PRACTICE |      |
| CAUSE OR CONTRIBUTING FACTORS:              |      |
| SUGGESTION FOR IMPROVING SAFETY:            |      |
| DRAW A PICTURE TO DESCRIBE SITUATION        |      |